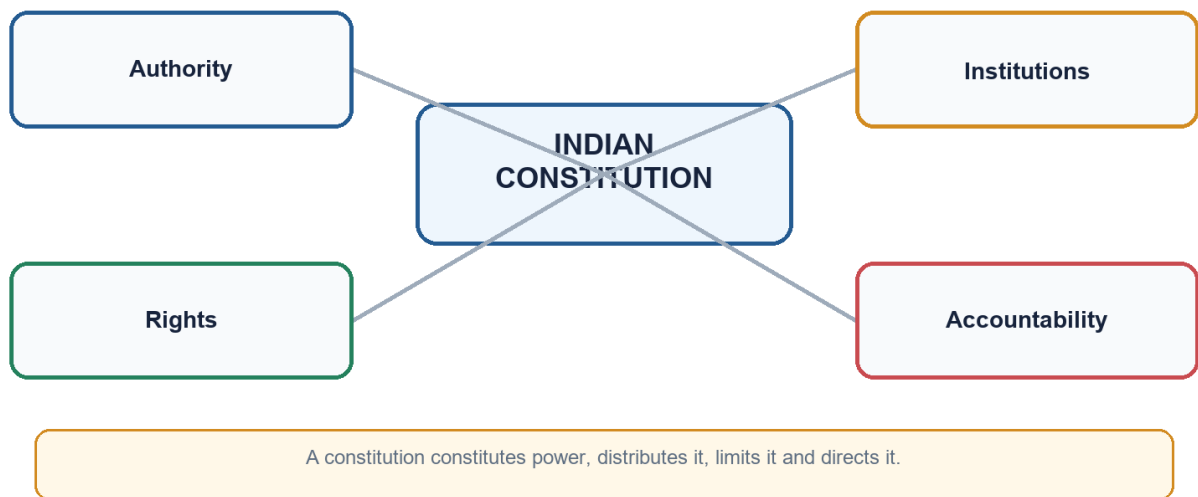


Salient Features of the Indian Constitution

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

CONSTITUTIONAL ARCHITECTURE



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / SESSION INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Salient Features of the Indian Constitution - Learner-v2 Source-Complete Learning Session 4

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Salient Features of the Indian Constitution - Learner-v2

Source-Complete Learning Session

Catalogue identity: Polity · Subject-wide Syllabus · polity-03 **Generation identity:**

polity-03: learner-v2:g2 · generated 21 August 2026 · supersedes polity-03: legacy-v1:g1 in metadata

only **Approval:** false - explicit approval of this exact generation is still required. **Evidence key:** [FACT] =

source-supported fact · [ANALYSIS] = exam synthesis · [LIMIT] = ownership, status or interpretation boundary.

BASIC LEARNING SESSION

Source audit, syllabus boundary and package counts

- **Mandatory source order followed:** complete Topic 03 owner -> Basic/Core owner -> Advanced owner -> Polity README, official-syllabus mapping, command index, answer-worthiness audit and PYQ ledgers -> direct text extraction from both local OCR-searchable M. Laxmikanth PDFs -> live official/reliable verification only for dated claims. Qdrant was not used.
- **Official syllabus ownership:** Mains GS-II "Indian Constitution - features" and "separation of powers"; Prelims GS-I Indian Polity and Governance.
- **Local PDF verification:** Sixth Revised Edition chapter pages 66-77 and Eighth Edition chapter pages 80 onward were text-checked for the 17-feature list, source table, amendment spectrum, federal-unitary indicators, three-tier government and cooperative societies.
- **Verified PYQs retained:** 2 Mains + 9 Prelims = 11 independently solved items. Demand-only ledger entries are never reconstructed into fictional options.
- **Practice:** 40 core MCQs + 8 remedials, with one continuous A -> B -> C -> D rotation; six original solved Mains models (2 × 10, 2 × 15, 2 × 20).
- **Preservation:** the three legacy g1 files and all legacy assets remain untouched. No dedicated polity-03 flowchart was found; this generation adds a separate, unapproved topic-folder companion.

Live-source decisions - checked 21 August 2026

- [FACT] **106th Amendment:** Gazette S.O. 1922(E), 16 April 2026, verifies commencement. [LIMIT] Commencement is not operational reservation; Article 334A requires the census-publication and delimitation sequence. No implementation election or seat projection is asserted. Official Gazette: <https://egazette.gov.in/WriteReadData/2026/271834.pdf>.
- [FACT] **Article 370 / J&K:** Supreme Court judgment of 11 December 2023 upheld the 2019 changes and directed restoration of statehood at the earliest without a deadline. Official Union material checked for this package still describes J&K as a Union Territory with a legislature. Judgment: https://api.sci.gov.in/supremecourt/2019/29796/29796_2019_1_1501_49019_Judgement_11-Dec-2023.pdf.
- [FACT] **Cooperative societies:** *Union of India v. Rajendra N. Shah* (2021) remains controlling for the State-cooperative Part IX-B limitation; Article 19(1)(c), Article 43B and the multi-State field survive. Judgment: https://api.sci.gov.in/supremecourt/2013/21321/21321_2013_32_1501_28728_Judgement_20-Jul-2021.pdf.
- [LIMIT] **Governor timelines:** no Governor-assent timeline claim is required for this architectural topic, so none is inserted. This avoids importing an adjacent and time-sensitive Article 200/201 dispute into static content.

Master learning roadmap

FEATURE LOGIC

- > WRITTEN DETAIL + SOURCE CAUTION
- > BORROWED / ADAPTED / REJECTED
- > RIGID + FLEXIBLE AMENDMENT
- > FEDERAL + CENTRALISING + COOPERATIVE + ASYMMETRIC
- > PARLIAMENTARY RESPONSIBILITY
- > CONSTITUTIONAL SUPREMACY + REVIEW + CHECKS
- > INTEGRATED INDEPENDENT JUDICIARY
- > RIGHTS + DPSP + DUTIES
- > SECULAR DEMOCRATIC REPUBLIC + UNIVERSAL FRANCHISE
- > SINGLE CITIZENSHIP + INDEPENDENT BODIES
- > EMERGENCY MODES + THREE-TIER GOVERNMENT + COOPERATIVES
- > CONSTITUTIONAL MORALITY + RULE OF LAW + LIMITED GOVERNMENT
- > CRITICISM / COUNTERARGUMENT / GRADED VERDICT

Answer-line control register

These sentences are controlled exam formulations. Every sentence appears unchanged in the relevant teaching stage and in the complete flowchart companion.

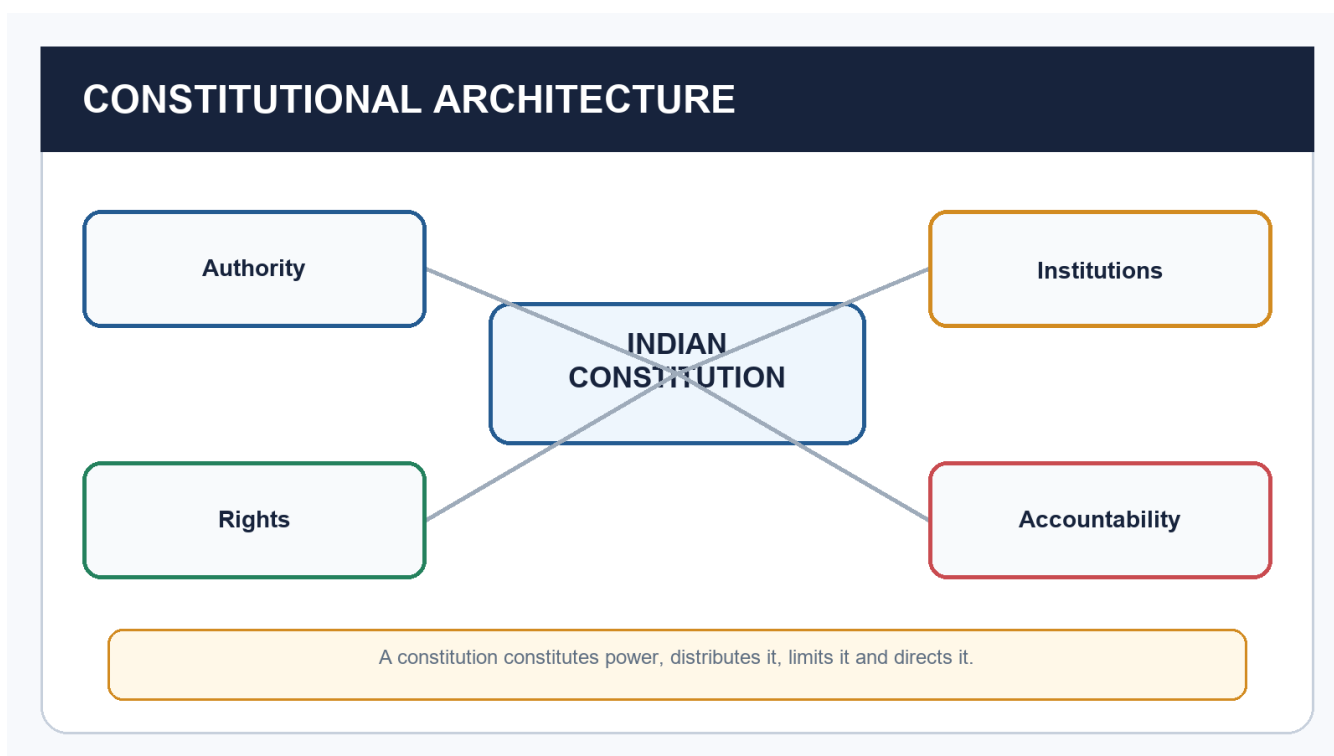
1. **01:** A salient constitutional feature is a system-level design characteristic produced by the interaction of provisions, institutions, values and practice.
2. **02:** India's written detail is an accommodation device: it constitutionalises diversity and administration, while remaining dependent on conventions, interpretation and implementation.
3. **03:** The Constitution is borrowed in ancestry but original in design because the framers selected, adapted and rejected foreign devices to serve Indian conditions.
4. **04:** India's graded amendment system combines adaptability with entrenchment, while the basic-structure doctrine prevents constitutional change from becoming constitutional destruction.
5. **05:** Indian federalism distributes power to accommodate diversity, but retains centralising, cooperative and asymmetric devices so the Union can coordinate without erasing the States.
6. **06:** Parliamentary government makes the executive continuously responsible to the elected lower House, although disciplined majorities can turn legislative confidence into executive dominance.
7. **06A:** India combines Parliament's broad legislative and constituent powers with judicial review under a supreme Constitution, making neither Parliament nor the judiciary sovereign in the British or American sense.
8. **07:** India separates core functions without isolating organs; constitutional overlaps are legitimate only when reciprocal checks prevent concentration of power.
9. **08:** Constitutional supremacy converts political power into legally bounded authority: every organ must show competence, fair procedure and respect for enforceable rights.
10. **09:** An integrated and independent judiciary supplies national legal unity and makes constitutional supremacy effective through review and remedies.
11. **10:** Fundamental Rights restrain power, Directive Principles direct social transformation and Fundamental Duties express civic responsibility; constitutional balance requires harmony without erasing their different legal status.
12. **11:** Indian secularism protects equal citizenship and freedom of conscience through principled state engagement, not a theocratic order or an absolute wall of separation.
13. **12:** Universal adult franchise constitutionalised equal political membership from the beginning, while representative institutions translate that equality into accountable government.
14. **13:** Single citizenship, integrated courts and All-India Services create administrative and legal unity within, not instead of, a federal polity.
15. **14:** Independent constitutional bodies disperse integrity functions outside ordinary executive control, but functional independence must coexist with transparency, reasons and review.
16. **15:** Emergency provisions permit temporary constitutional centralisation for crisis management, but they do not authorise permanent unitary rule or extra-constitutional government.

17. **16:** The 73rd and 74th Amendments deepened democracy by constitutionalising a third tier, yet real decentralisation still depends on functions, funds and functionaries.
18. **16A:** The cooperative-society provisions constitutionalise voluntary and democratic association, while federal competence limits Part IX-B's operation for State cooperatives.
19. **17:** Constitutional asymmetry uses differentiated territorial, tribal, cultural and linguistic arrangements to pursue integration through accommodation rather than coerced uniformity.
20. **18:** The Constitution retained administrative machinery from colonial rule but transformed its legitimacy through popular sovereignty, rights, universal franchise and responsible government.
21. **18A:** Constitutional morality is fidelity to constitutional forms, values and restraint; it must discipline power through text and structure rather than become a label for personal preference.
22. **19:** A Constitution creates public power, constitutional law governs it and constitutionalism asks whether effective limits, accountability and remedies actually operate.
23. **20:** The Constitution's tensions are not design failures by definition; they become failures when central capacity defeats federalism, majority rule defeats rights or institutional independence escapes accountability.
24. **FINAL:** The Indian Constitution is a carefully adapted architecture of authority, restraint, representation and transformation whose success depends as much on constitutional morality and institutions as on text.

01. What counts as a salient constitutional feature

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (OPENING DEFINITION): A salient constitutional feature is a system-level design characteristic produced by the interaction of provisions, institutions, values and practice.

[FACT] A salient feature is a recurring design characteristic that explains how the constitutional order is organised, limited and directed; it is wider than one provision and narrower than the Constitution as a whole.



What counts as a salient constitutional feature

Caption: A constitution constitutes power, distributes it, limits it and directs it. Original deterministic schematic prepared for this package.

Term	Meaning	Example
Feature	A system-level characteristic produced by several rules	Federal with centralising features
Provision	A textual rule or cluster in the Constitution	Article 1: Union of States

Term	Meaning	Example
Institution	An office or body created or recognised by law	Election Commission of India
Value	A normative commitment that guides interpretation and government	Liberty, equality, dignity, fraternity

Teaching and analysis

- [FACT] A feature answers 'what kind of constitutional order is this?'; a provision answers 'what does the text command or permit?'; an institution answers 'who performs a function?'; and a value answers 'towards what constitutional end?'.
- [ANALYSIS] Salient features should be explained as relationships: written detail supports legal certainty; federal distribution accommodates territory; parliamentary responsibility links executive power to representation; rights and review limit public power.
- [FACT] Constitutional supremacy means every organ receives authority from the Constitution. Limited government follows because competence, procedure and rights constrain the Union, States and institutions.
- [ANALYSIS] Rule of law supplies the operating ethic: public power must have legal authority, like cases must be treated alike, and remedies must exist against arbitrariness.
- [LIMIT] 'Salient features' is a teaching classification, not a closed constitutional schedule. Lists vary by author and constitutional development.
- [LIMIT] Do not equate every salient feature with the judicial basic-structure doctrine. Basic structure is a judicial limit on the amending power; Topic 10 owns its full development.

UPSC traps

- Wrong: A feature is the same as an Article.

Correct: A feature usually emerges from several provisions, institutions and practices.

- Wrong: All important features are basic structure elements.

Correct: The categories overlap but are not identical.

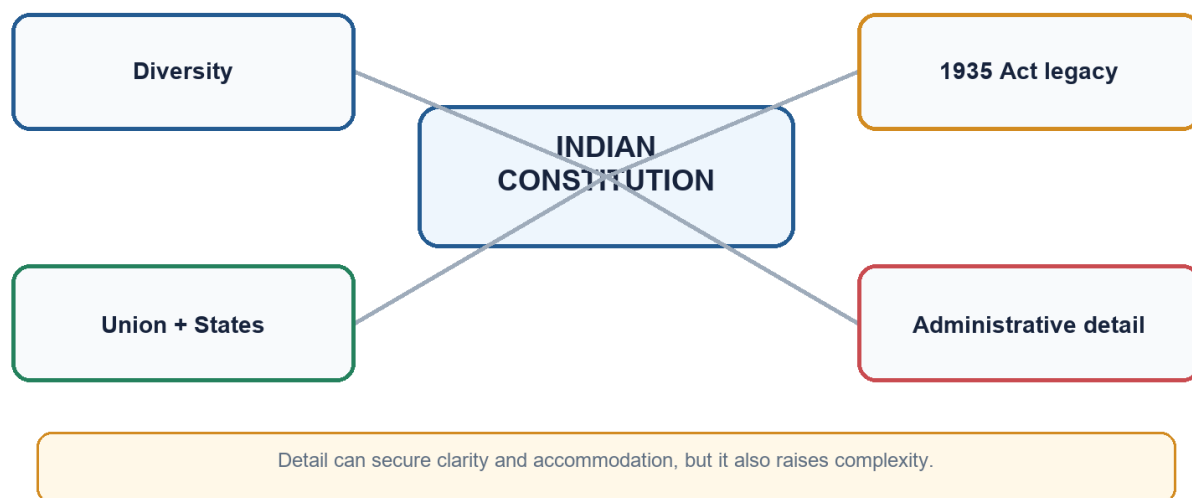
Cross-link: Owner links: Preamble (Topic 04); Amendment and Basic Structure (Topic 10); specialist institutional topics.

02. Written, lengthy and detailed Constitution

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (CORE ARGUMENT): India's written detail is an accommodation device: it constitutionalises diversity and administration, while remaining dependent on conventions, interpretation and implementation.

[FACT] India has a written, comprehensive and unusually detailed Constitution because it combines fundamental rules with substantial administrative design for a vast and diverse Union.

WRITTEN, LONG AND DETAILED



Written, lengthy and detailed Constitution

Caption: Detail can secure clarity and accommodation, but it also raises complexity. Original deterministic schematic prepared for this package.

Dimension	Constitutional significance	Qualification
Written	Authoritative text and reviewable allocation of power	Text still works with conventions and judicial interpretation
Detailed	Administrative and institutional specificity	Detail can create complexity and frequent amendment
Original 1949 form	Preamble, 395 Articles, 22 Parts, 8 Schedules	Use these as historical counts
Later form	25 Parts and 12 Schedules in the source snapshot	Exact Article totals vary by counting method

Teaching and analysis

- [FACT] Laxmikanth identifies four reasons for size: geographical diversity; the bulky Government of India Act, 1935; one constitutional framework for the Union and States; and the influence of legal specialists in the Constituent Assembly.
- [FACT] The text constitutionalises matters that some systems leave to ordinary legislation or convention. This choice increases legal visibility and permits judicial enforcement where the Constitution creates standards.
- [ANALYSIS] Detail is an accommodation technology. It can specify institutions, minority protections, territorial arrangements and emergency rules in advance, reducing reliance on unwritten consensus.
- [ANALYSIS] Detail also has costs: amendment pressure, technical complexity, litigation over fine distinctions and a tendency to mistake constitutional design for guaranteed implementation.
- [LIMIT] 'Longest' is a comparative textbook description, not a licence to quote an unsourced current Article count. Inserted, omitted and renumbered Articles make totals method-dependent.
- [LIMIT] Written does not mean self-executing. Conventions, statutes, rules, political parties, administrative capacity and constitutional morality determine whether text becomes practice.

UPSC traps

- Wrong: Written means no conventions operate.

Correct: India has written supremacy alongside conventions, especially in parliamentary government.

- Wrong: The current Article count is a single uncontested number.

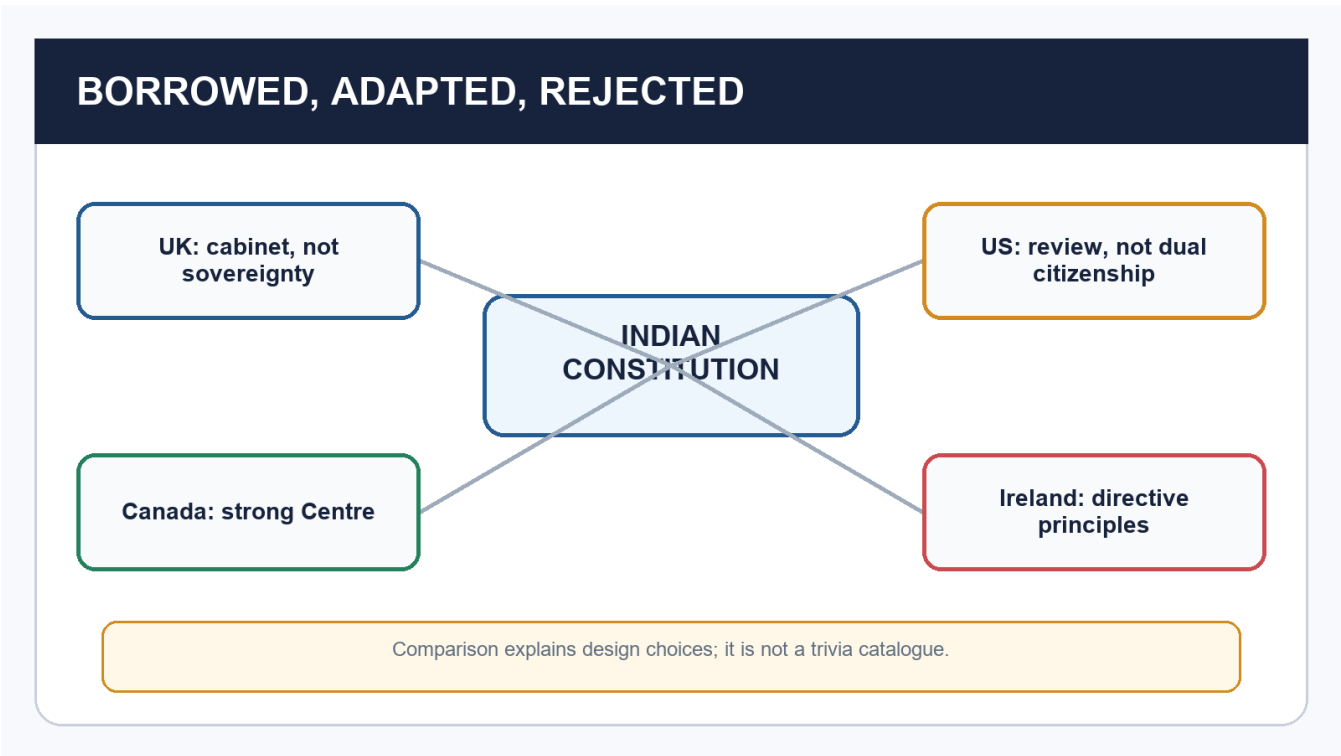
Correct: Parts and Schedules are safer; explain the counting caveat.

Cross-link: Cross-link: Polity 01 for the 1935 Act; Polity 02 for drafting choices.

03. Borrowed sources as adaptation, not copying

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (CORE ARGUMENT): The Constitution is borrowed in ancestry but original in design because the framers selected, adapted and rejected foreign devices to serve Indian conditions.

[FACT] The Constitution drew from multiple constitutional traditions and the 1935 Act, but the exam-worthy point is selective adaptation to Indian conditions rather than a catalogue of foreign origins.



Borrowed sources as adaptation, not copying

Caption: Comparison explains design choices; it is not a trivia catalogue. Original deterministic schematic prepared for this package.

Source	Adapted feature	Indian alteration / context
United Kingdom	Cabinet government, rule of law, single citizenship, bicameralism	No parliamentary sovereignty; republican head; written limits
United States	Fundamental Rights, judicial review, judicial independence, Vice-President	No presidential executive, dual citizenship or rigid separation
Canada	Strong-Centre federation, residuary power at Union, appointed Governors	Combined with parliamentary government and asymmetric provisions
Ireland	DPSP, nominated Rajya Sabha members, presidential election method	DPSP made fundamental in governance but non-justiciable
Australia	Concurrent List, joint sitting, trade and commerce freedom	Placed within India's stronger Union framework
France / USSR / South Africa / Japan	Republic and fraternity / duties and justice / amendment procedure / procedure established by law	Each element was fitted into a different overall design

Teaching and analysis

- [FACT] The structural part was strongly influenced by the Government of India Act, 1935; the philosophical parts drew notably on American rights and Irish directive principles; executive-legislative relations drew on the British model.
- [ANALYSIS] Adaptation is shown by rejection. India accepted cabinet responsibility but rejected hereditary monarchy and unlimited Parliament; accepted review but rejected dual citizenship and a presidential executive.
- [FACT] The 1935 Act supplied federal, gubernatorial, judicial, public-service, emergency and administrative material. Popular sovereignty, universal franchise, enforceable rights and republican government transformed its purpose.
- [ANALYSIS] Comparative references earn marks only when they prove why India's combination is distinctive: parliamentary plus federal, written plus flexible, rights plus directive principles, central capacity plus asymmetry.
- [LIMIT] Borrowed-source lists are prone to false one-to-one claims. A feature may have multiple intellectual and institutional influences; use the repository-verified table and avoid decorative trivia.
- [LIMIT] The specialist comparative owner should carry operational country comparison. This topic uses comparisons only to illuminate adaptation.

UPSC traps

- Wrong: Concurrent List came from Canada.

Correct: It is conventionally traced to Australia; strong-Centre federalism is linked to Canada.

- Wrong: India copied British parliamentary sovereignty.

Correct: India adopted responsible government under constitutional supremacy.

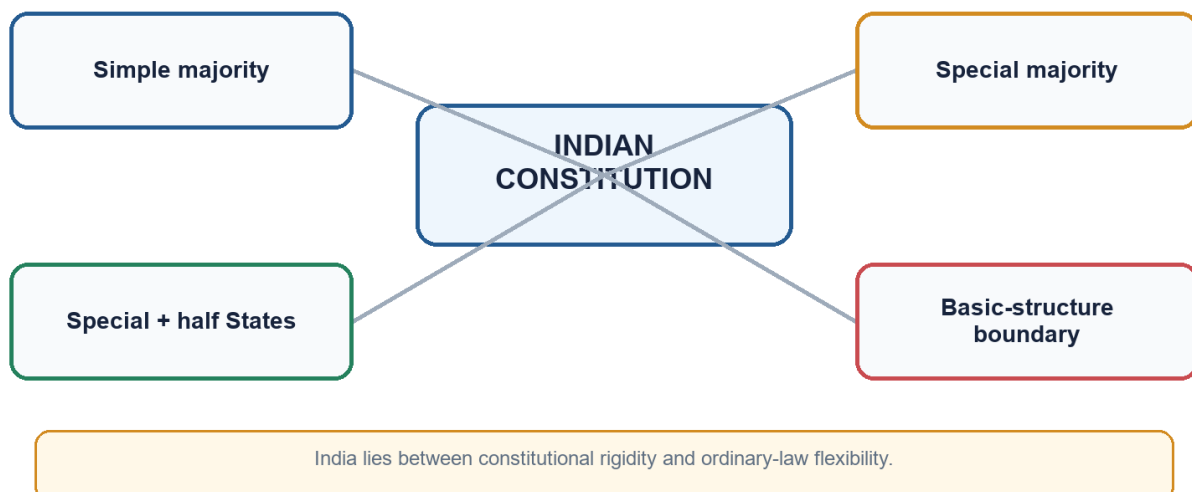
Cross-link: Owner link: Comparative Constitutional Schemes (Topic 47) for full country comparison.

04. Blend of rigidity and flexibility

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (CORE ARGUMENT): India's graded amendment system combines adaptability with entrenchment, while the basic-structure doctrine prevents constitutional change from becoming constitutional destruction.

[FACT] The amendment design combines ordinary legislative change, special parliamentary majorities and, for specified federal matters, ratification by at least half of the States.

AMENDMENT SPECTRUM



Blend of rigidity and flexibility

Caption: India lies between constitutional rigidity and ordinary-law flexibility. Original deterministic schematic prepared for this package.

Route	Core logic	Significance
Simple majority outside Article 368	Certain constitutional changes follow ordinary-law style procedure	Adaptability without treating every change as constituent amendment
Special majority under Article 368	Majority of total membership plus two-thirds present and voting in each House	Entrenches constitutional choice
Special majority plus State ratification	Specified federal provisions also require at least half the States	Protects the federal compact
Judicial boundary	Amending power cannot damage basic structure	Flexibility is constitutionally bounded

Teaching and analysis

- [FACT] India is neither as flexible as the classic British model nor as rigid as the United States model. Different subjects receive different levels of entrenchment.
- [ANALYSIS] Graduated amendment rules align procedure with constitutional stakes: technical or territorial adjustments may be easier, while federal balance receives State participation.
- [FACT] Article 368 supplies constituent power and procedure, but some changes described as constitutional amendments lie outside Article 368 and use simple majority.
- [ANALYSIS] The basic-structure doctrine creates a tension between democratic updating and constitutional identity: amendment is broad, not destructive.
- [LIMIT] Basic structure is not a textual schedule and has no exhaustive closed list. Its doctrine and cases belong to Topic 10.
- [LIMIT] Never say every constitutional amendment needs State ratification, a referendum or a joint sitting. India has no constitutional referendum requirement for Article 368 amendments.

UPSC traps

- Wrong: All amendments use Article 368.

Correct: Some constitution-related changes use simple majority outside it.

- Wrong: Basic structure prevents amendment.

Correct: It prevents destructive alteration, not constitutional change as such.

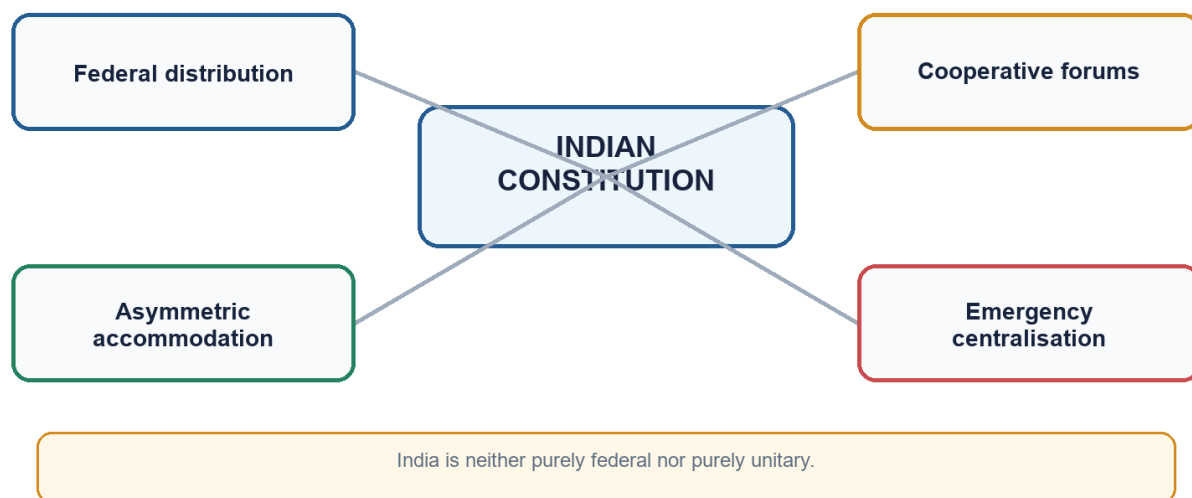
Cross-link: Owner link: Amendment and Basic Structure (Topic 10).

05. Federal system with centralising, cooperative and asymmetric dimensions

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (ANALYTICAL TRANSITION): Indian federalism distributes power to accommodate diversity, but retains centralising, cooperative and asymmetric devices so the Union can coordinate without erasing the States.

[FACT] India is a federation in structure with constitutionally strong Union capacity; its operation also includes cooperative, competitive and asymmetric forms of federalism.

FEDERAL WITH CENTRALISING CAPACITY



Federal system with centralising, cooperative and asymmetric dimensions

Caption: India is neither purely federal nor purely unitary. Original deterministic schematic prepared for this package.

Federal dimension	Illustration	Centralising / qualifying feature
Dual governments	Union and States have constitutional fields	Union has residuary power and stronger crisis capacity
Distribution of powers	Union, State and Concurrent Lists	Union priority in constitutionally specified conflicts
Written supremacy	Competence is constitutionally allocated	Parliament may reorganise State boundaries under the Constitution
Judicial umpire	Courts decide competence disputes	Integrated, not dual, judiciary
Territorial chamber	Rajya Sabha represents States	Representation is unequal and party discipline matters

Teaching and analysis

- [FACT] Article 1 calls India a 'Union of States'; the Constitution does not use 'Federation'. The Union was not created by a compact among sovereign States, and States have no right to secede.
- [FACT] Federal indicators include two levels of government, distribution of legislative power, written supremacy, partial rigidity, judicial review and bicameralism.
- [FACT] Centralising indicators include single citizenship, integrated courts, Union appointment of Governors, All-India Services, emergency provisions, a strong Union list and one Constitution for the general Union-State framework.
- [ANALYSIS] Cooperative federalism appears where governments jointly finance, deliberate or implement; competitive federalism describes comparison for investment and governance; asymmetry gives differentiated arrangements to accommodate distinct histories and communities.
- [ANALYSIS] The design seeks survival and integration without erasing diversity. Central capacity can coordinate national action, but excessive use can weaken State autonomy and democratic accountability.
- [LIMIT] 'Quasi-federal' is a scholar's description, not constitutional text. A good answer weighs domains and time periods instead of declaring India simply unitary.
- [FACT][LIVE OFFICIAL - checked 21 August 2026] Gazette notification S.O. 1922(E) brought the Constitution (One Hundred and Sixth Amendment) Act, 2023 into force on 16 April 2026. [LIMIT] Article 334A still links actual

reservation to delimitation undertaken after publication of the relevant figures of the first census taken after commencement; no publication date, delimitation date, election year or seat projection is asserted.

UPSC traps

- Wrong: India is purely unitary because the Centre is strong.

Correct: It has a constitutionally distributed federal structure with centralising features.

- Wrong: Asymmetry violates federalism.

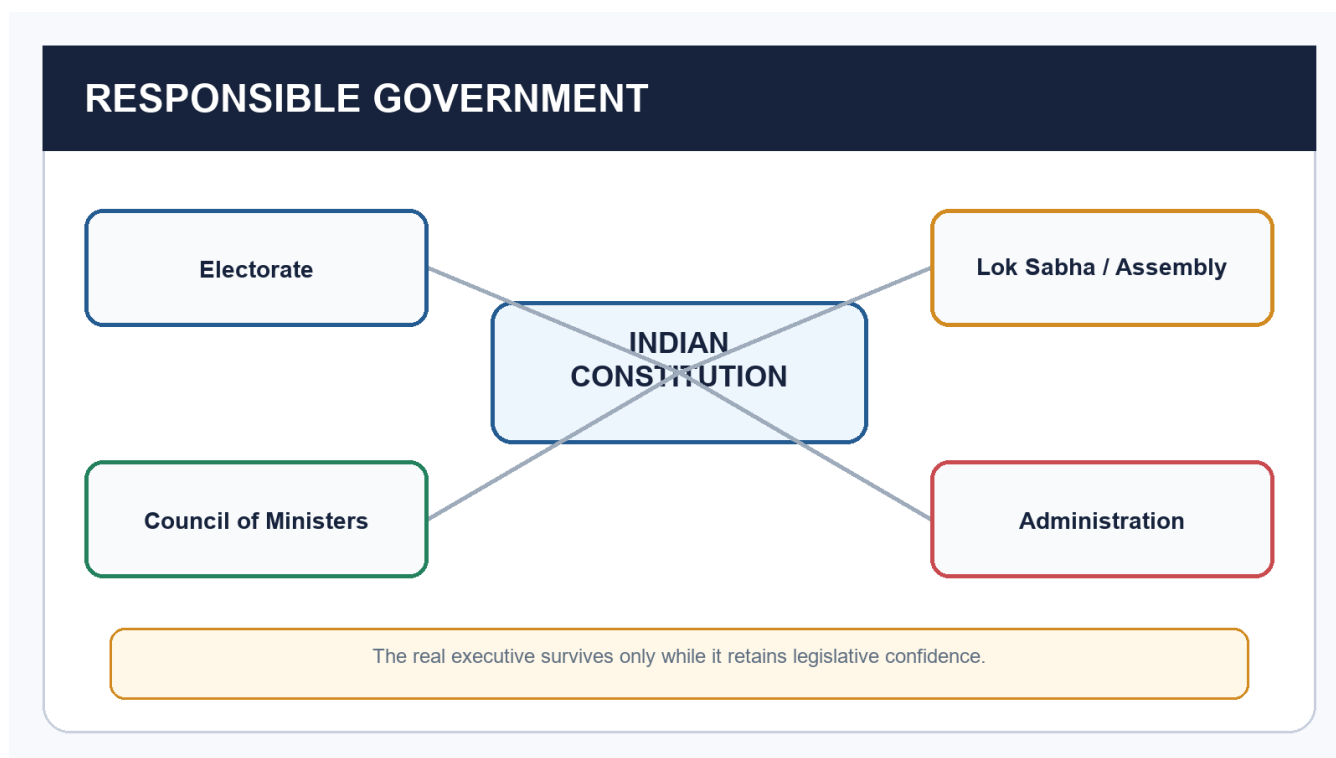
Correct: Differentiated arrangements can be a federal device for accommodation.

Cross-link: Owner links: Federal System (12), Centre-State Relations (13), Special Provisions (22).

06. Parliamentary government and responsible executive

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (CORE ARGUMENT): Parliamentary government makes the executive continuously responsible to the elected lower House, although disciplined majorities can turn legislative confidence into executive dominance.

[FACT] India adopts parliamentary government at Union and State levels: a nominal constitutional head works with a real Council of Ministers collectively responsible to the elected lower House.



Parliamentary government and responsible executive

Caption: The real executive survives only while it retains legislative confidence. Original deterministic schematic prepared for this package.

Feature	Mechanism	Risk / qualification
Dual executive	President/Governor as formal head; PM/CM-led Council as real executive	Discretion exists only in constitutionally bounded situations
Collective responsibility	Council stands or falls together before lower House	Large majority and party discipline can weaken scrutiny
Fusion	Ministers normally sit in the legislature	Fusion is not absence of checks
Confidence	Government requires lower-House support	Coalitions and anti-defection law affect incentives

Teaching and analysis

- [FACT] Responsible government links executive survival to legislative confidence. It differs from a presidential separation in which executive tenure is independently fixed.
- [FACT] Core features include nominal and real executives, majority leadership, collective responsibility, ministerial membership in the legislature, PM/CM leadership and possible dissolution of the lower House.
- [ANALYSIS] The accountability chain is electoral and institutional: citizens choose representatives; the lower House sustains or removes the ministry; questions, debates, committees and budget control scrutinise administration.
- [ANALYSIS] Parliamentary government favours coordination and responsiveness, but executive dominance can arise when the ministry controls a disciplined legislative majority.
- [LIMIT] Indian Parliament is not sovereign like Westminster. Written limits, federal competence, Fundamental Rights, judicial review and basic structure constrain it.
- [LIMIT] Do not call the President merely ceremonial in every context. The office has constitutional powers, generally exercised on ministerial aid and advice subject to specified text and conventions.

UPSC traps

- Wrong: Fusion means no separation of powers.

Correct: Parliamentary fusion coexists with judicial review and institutional checks.

- Wrong: Responsible government guarantees effective scrutiny.

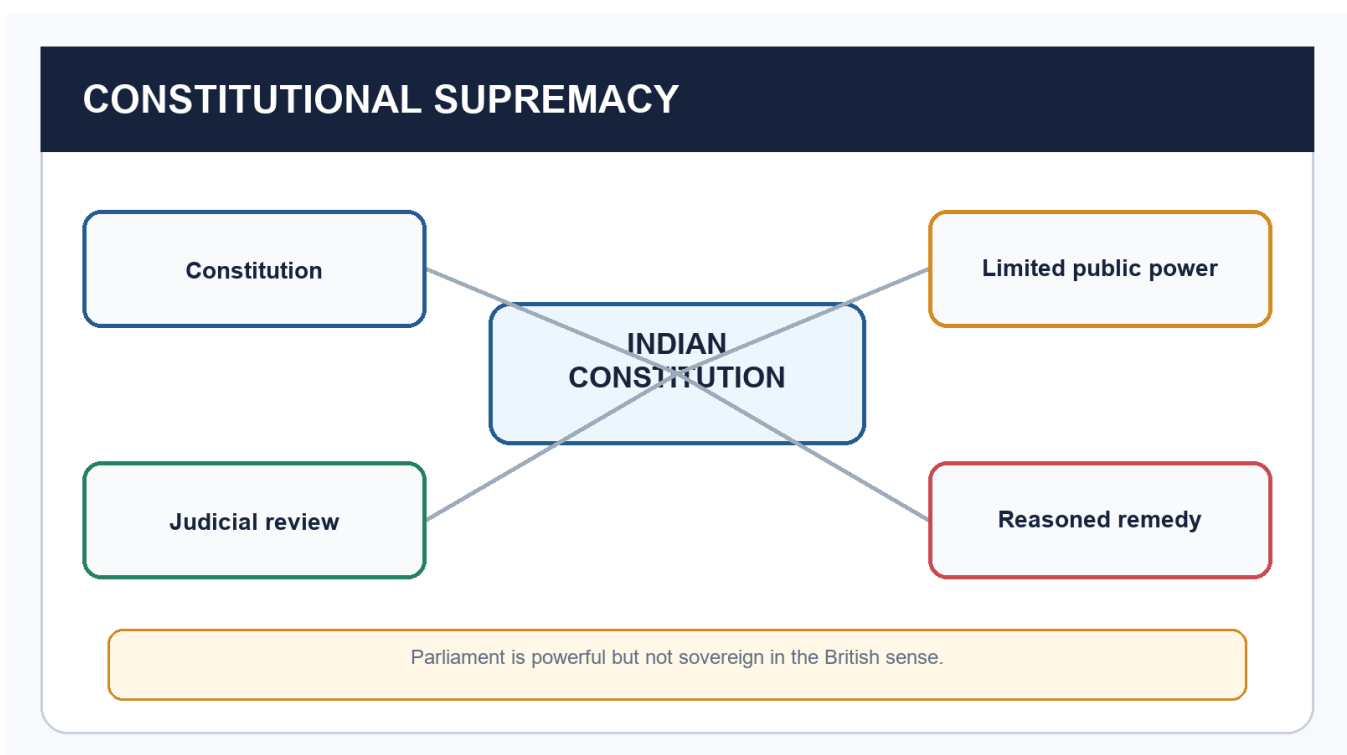
Correct: Party majorities and anti-defection incentives may reduce deliberative accountability.

Cross-link: Owner links: Parliamentary System (11), President (15), PM and Council (16), Parliament (17).

06A. Synthesis of parliamentary power, judicial review and constitutional supremacy

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (ANALYTICAL TRANSITION): India combines Parliament's broad legislative and constituent powers with judicial review under a supreme Constitution, making neither Parliament nor the judiciary sovereign in the British or American sense.

[FACT] India borrows the British idea of a powerful Parliament and the American idea of judicial review, but places both inside a written and supreme Constitution.



Parliamentary power, judicial review and constitutional supremacy

Caption: Parliament and courts exercise constitutionally assigned powers; the Constitution remains supreme.

Dimension	Indian position	Close-option control
Ordinary legislation	Parliament legislates within constitutional competence	A majority cannot validate an unconstitutional law
Constituent power	Parliament may amend under Article 368	The basic-structure limit prevents destructive amendment
Judicial review	Courts may invalidate unconstitutional action	Review does not make courts an unlimited sovereign
Article 21	Text says 'procedure established by law'	<i>Maneka Gandhi</i> requires fair, just and reasonable procedure; India did not copy the entire US model wholesale

Teaching and analysis

- [FACT] Articles 13, 32 and 226 make constitutional limits enforceable; Article 368 supplies broad amendment power.
- [ANALYSIS] The synthesis prevents two absolutes: Westminster-style parliamentary sovereignty and court-centred government.
- [LIMIT] 'Judicial supremacy' is textbook shorthand. The exam-safe formulation is constitutional supremacy enforced partly through judicial review.

UPSC traps

- Wrong: Parliament is sovereign because it can amend the Constitution.

Correct: Amendment power is constitutionally conferred and basic-structure limited.

- Wrong: Judicial review makes every judicial policy preference final.

Correct: Courts must reason from constitutional text, structure, precedent and jurisdiction.

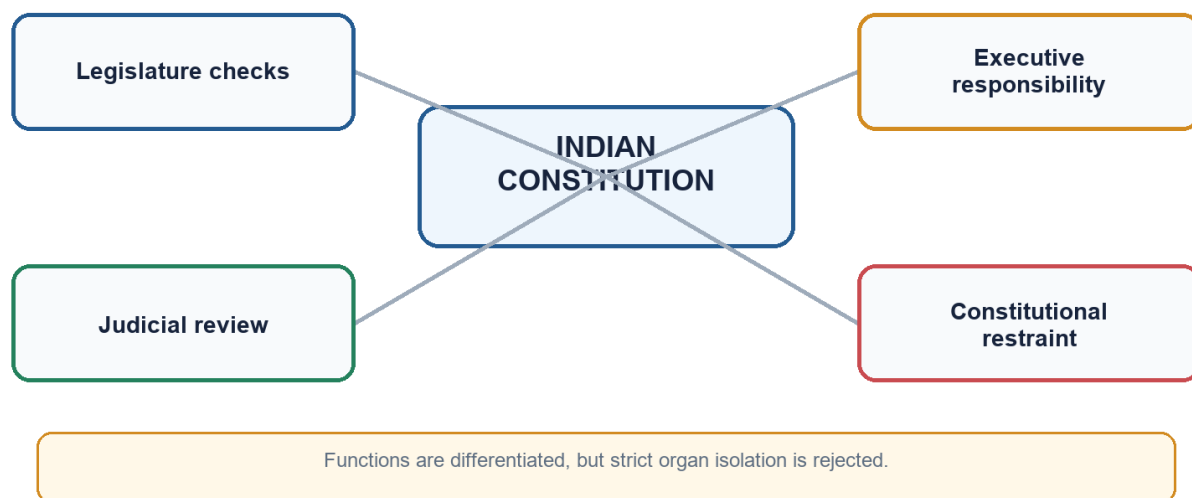
Cross-link: Parliament (Topic 17), Supreme Court (Topic 18), Amendment and Basic Structure (Topic 10).

07. Separation of powers through checks and balances

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (CORE ARGUMENT): India separates core functions without isolating organs; constitutional overlaps are legitimate only when reciprocal checks prevent concentration of power.

[FACT] India does not adopt strict separation; it differentiates core functions while permitting overlap and reciprocal checks.

SEPARATION WITH OVERLAP



Separation of powers through checks and balances

Caption: Functions are differentiated, but strict organ isolation is rejected. Original deterministic schematic prepared for this package.

Constitutional marker	What it protects	Qualification
Article 50	Separation of judiciary from executive in public services of the State	A DPSP, not by itself a directly enforceable right
Articles 121 and 211	Limits legislative discussion of judges' conduct except removal process	Does not immunise judgments from criticism
Articles 122 and 212	Procedural autonomy of legislatures	Substantive constitutional illegality remains reviewable within doctrine
Articles 123 and 213	Executive ordinance law-making	Temporary, conditioned legislative power
Articles 13, 32 and 226	Judicial review and remedies	Review is constitutional, not judicial government

Teaching and analysis

- [FACT] Ram Jawaya Kapur (1955) recognised that the Constitution does not contemplate a rigid separation, though functions are sufficiently differentiated.
- [FACT] Kesavananda Bharati (1973) and *Indira Nehru Gandhi v. Raj Narain* (1975) anchor separation and review within basic-structure reasoning.
- [ANALYSIS] Overlap is functional: executives initiate most legislation and may issue ordinances; legislatures hold executives accountable; courts review legality and frame procedural rules.
- [ANALYSIS] Checks and balances prevent concentration without paralysing government. The test is whether overlap preserves each organ's constitutionally assigned core and accountability.
- [LIMIT] Judicial independence is not judicial supremacy. Courts are bound by text, precedent, reasons, jurisdiction and institutional limits.
- [LIMIT] Legislative privilege and internal procedure are not zones of total immunity; nor may courts substitute policy preference for constitutional adjudication.

UPSC traps

- Wrong: India follows Montesquieu-style strict separation.

Correct: India follows functional separation with checks, balances and overlaps.

- Wrong: Judicial review makes courts sovereign.

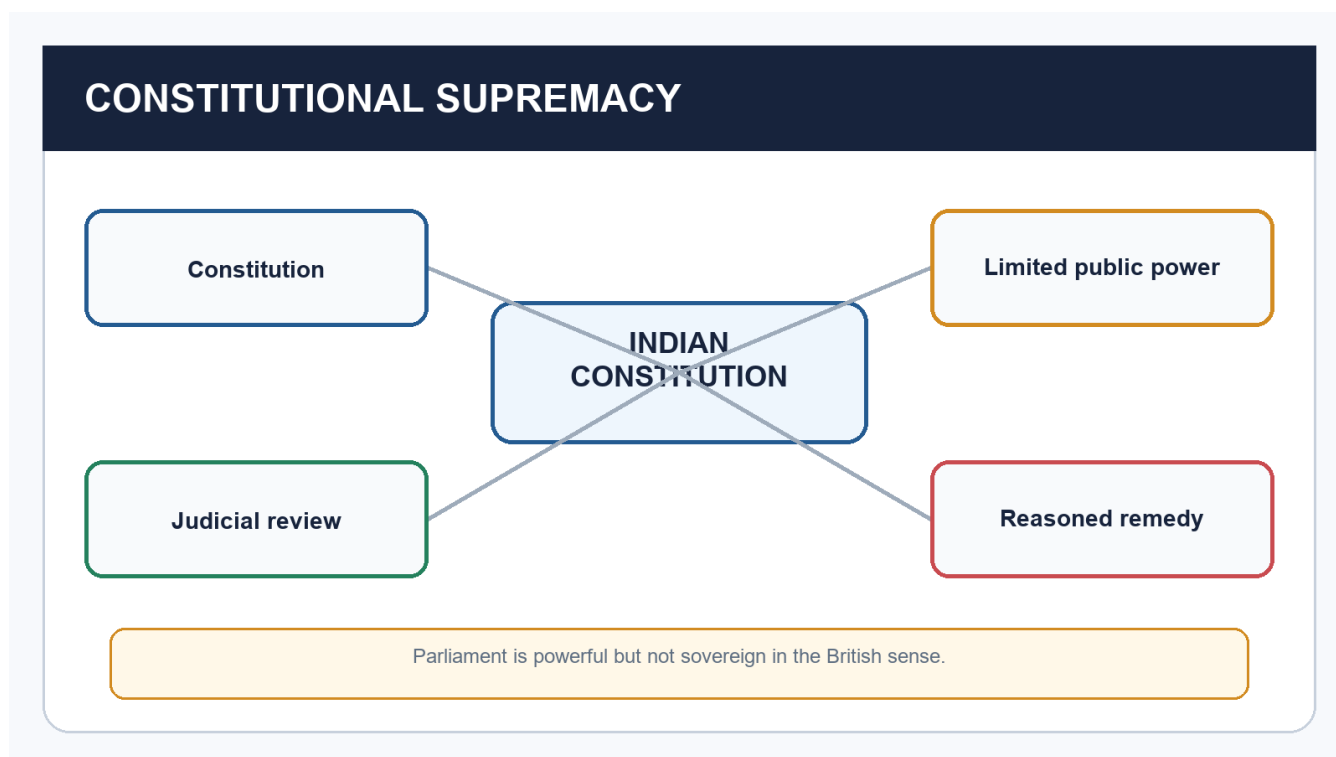
Correct: The Constitution is supreme; judicial review is one enforcement mechanism.

Cross-link: Direct owner of 2019 GS-II separation-of-powers PYQ; Judiciary topics own deeper doctrine.

08. Constitutional supremacy, rule of law and limited government

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (CORE ARGUMENT): Constitutional supremacy converts political power into legally bounded authority: every organ must show competence, fair procedure and respect for enforceable rights.

[FACT] The Constitution is the superior source of public authority; rule of law and judicially enforceable limits distinguish constitutional government from merely popular or legislative government.



Constitutional supremacy, rule of law and limited government

Caption: Parliament is powerful but not sovereign in the British sense. Original deterministic schematic prepared for this package.

Idea	Core test	Exam distinction
Constitutional supremacy	Can every organ trace and justify its power under the Constitution?	Different from British parliamentary sovereignty
Rule of law	Is power authorised, non-arbitrary and equally applied?	Not rule by any enacted law
Limited government	Are competence, procedure and rights enforceable limits?	Elections alone do not create constitutionalism
Judicial review	Can unconstitutional action be invalidated or corrected?	Review is not policy administration

Teaching and analysis

- [FACT] Dicey's classic rule-of-law elements are supremacy of regular law over arbitrary power, equality before law and a legal spirit in which courts protect rights. India's written rights and remedies alter the British setting but preserve the anti-arbitrariness core.
- [FACT] Articles 13, 32 and 226 are central review/remedy anchors; Article 368 gives broad amendment power subject to the basic-structure limit.

- [ANALYSIS] Constitutional government both creates and restrains power. Institutions need sufficient capacity to govern, yet must remain within jurisdiction, follow fair procedure and justify restrictions.
- [ANALYSIS] Law and liberty are not simple opposites. General, prospective and reviewable law can create ordered liberty by restraining arbitrary coercion.
- [LIMIT] Procedure established by law in Article 21 is the textual phrase. After Maneka Gandhi, procedure must be fair, just and reasonable; do not claim India simply copied the entire American substantive-due-process model.
- [LIMIT] Parliamentary majority is democratic evidence, not a waiver of constitutional limits.

UPSC traps

- Wrong: Rule of law means any action backed by statute is valid.

Correct: The law and its application must satisfy constitutional competence and rights.

- Wrong: Limited government means weak government.

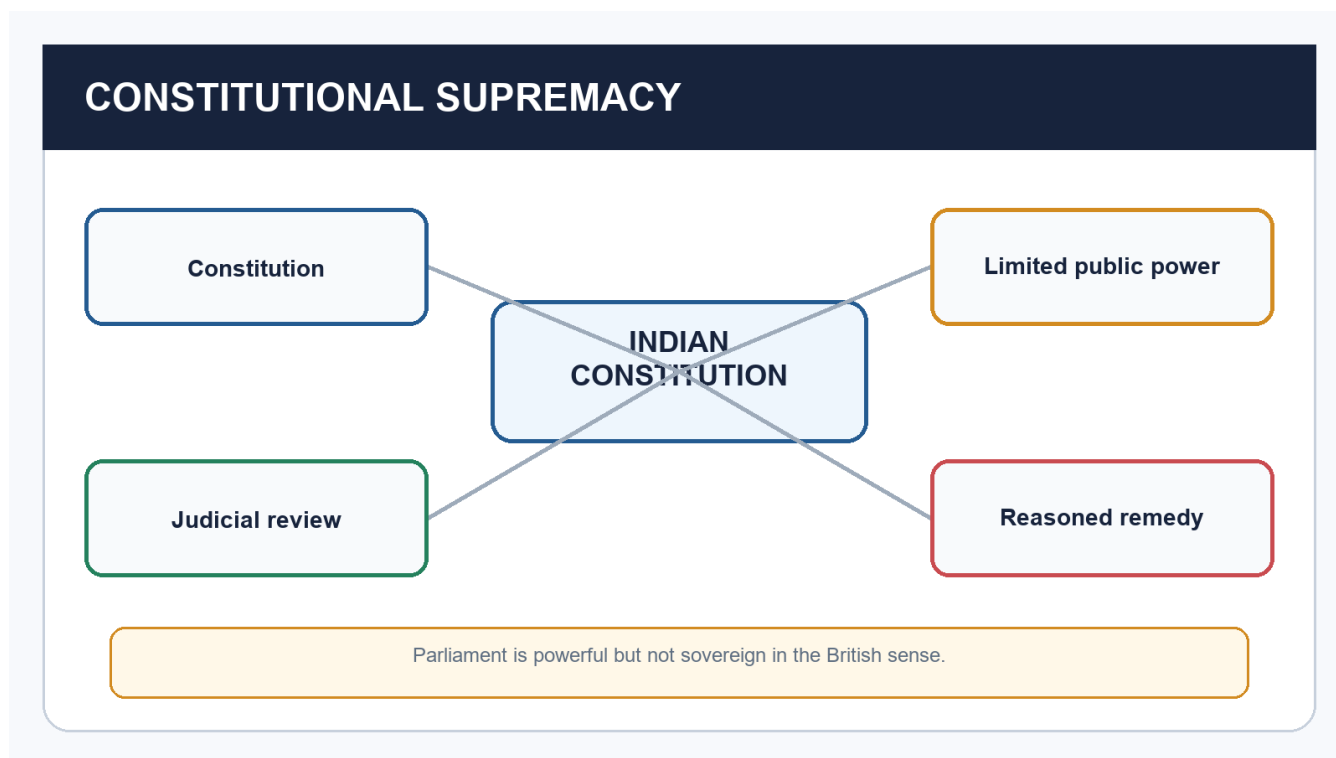
Correct: It means legally bounded government with adequate constitutional capacity.

Cross-link: Owner links: Fundamental Rights (07), Supreme Court (18), Amendment and Basic Structure (10).

09. Independent, integrated judiciary and judicial review

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (CORE ARGUMENT): An integrated and independent judiciary supplies national legal unity and makes constitutional supremacy effective through review and remedies.

[FACT] India has one integrated judicial hierarchy administering Union and State law, designed to remain institutionally independent and to enforce constitutional supremacy.



Independent, integrated judiciary and judicial review

Caption: Parliament is powerful but not sovereign in the British sense. Original deterministic schematic prepared for this package.

Dimension	Meaning	Limit
Integrated	Supreme Court, High Courts and subordinate courts form one hierarchy	Federal disputes still receive constitutionally assigned jurisdiction
Independent	Tenure, service conditions, charged expenditure and institutional protections reduce external control	Appointment and accountability debates continue

Dimension	Meaning	Limit
Review	Courts test legislative and executive action against the Constitution	Review does not confer unlimited governance power
Remedies	Supreme Court and High Courts issue writs within constitutional jurisdiction	Access, delay and compliance affect effectiveness

Teaching and analysis

- [FACT] The Supreme Court is the apex court, federal court, final appellate court, protector of Fundamental Rights and guardian of constitutional boundaries.
- [FACT] Independence safeguards include security of tenure, protected service conditions, charged expenditure, restrictions on legislative discussion of judicial conduct, contempt power and constitutional separation from the executive.
- [ANALYSIS] Integration promotes legal unity: the same court system applies Union and State law, unlike a fully dual federal judiciary.
- [ANALYSIS] Judicial review makes written supremacy operational by providing reasoned remedies against ultra vires action.
- [LIMIT] Judicial independence is institutional impartiality, not absence of accountability, criticism or constitutional limits.
- [LIMIT] This package does not duplicate appointments, jurisdiction, PIL, activism or tribunal doctrine; those belong to judicial owner topics.

UPSC traps

- Wrong: Integrated judiciary means States have no High Courts.

Correct: High Courts are constitutionally significant within one integrated hierarchy.

- Wrong: Independent judiciary equals judicial supremacy.

Correct: The Constitution, not any organ, is supreme.

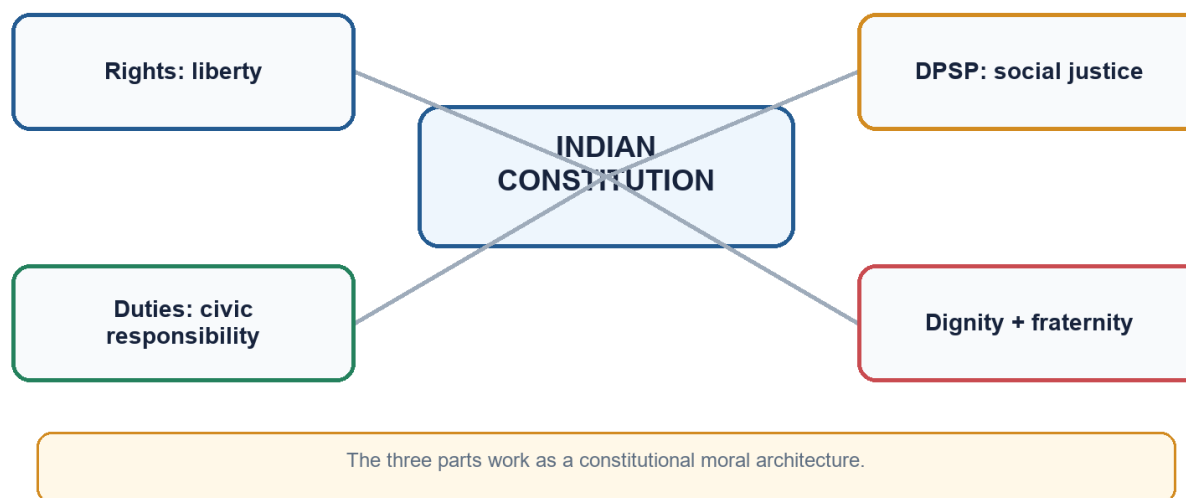
Cross-link: Owner links: Supreme Court (18), High Courts and Subordinate Courts (21), Tribunals (46).

10. Rights, Directive Principles and Duties as normative architecture

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (CORE ARGUMENT): Fundamental Rights restrain power, Directive Principles direct social transformation and Fundamental Duties express civic responsibility; constitutional balance requires harmony without erasing their different legal status.

[FACT] Parts III, IV and IV-A combine enforceable liberty, governance directives for social transformation and citizen duties; their constitutional roles differ but their purposes interact.

NORMATIVE TRIANGLE



Rights, Directive Principles and Duties as normative architecture

Caption: The three parts work as a constitutional moral architecture. Original deterministic schematic prepared for this package.

Component	Legal position	Constitutional purpose
Fundamental Rights	Justiciable, subject to constitutional restrictions	Political liberty, equality and remedies
Directive Principles	Non-justiciable; declared fundamental in governance	Social/economic democracy and welfare orientation
Fundamental Duties	Non-justiciable citizen duties	Civic responsibility and interpretive support
Balance	Harmony, not automatic hierarchy	Dignity, freedom and social justice

Teaching and analysis

- [FACT] Fundamental Rights restrain arbitrary public power and enable remedies. They are not absolute, and not every right belongs only to citizens.
- [FACT] DPSP are not enforceable in court merely as DPSP, yet Article 37 declares them fundamental in governance and imposes a duty on the State to apply them in law-making.
- [FACT] Fundamental Duties were added by the 42nd Amendment, with an additional duty later added by the 86th Amendment. Their full content belongs to Topic 09.
- [FACT] *Minerva Mills* (1980) treats harmony between Fundamental Rights and Directive Principles as central to constitutional balance.
- [ANALYSIS] The architecture answers three questions: what the State may not unjustifiably do; what social order it should pursue; and what civic commitments citizens should cultivate.
- [LIMIT] Do not turn DPSP into directly enforceable rights or Duties into free-standing penal offences. Legislation may give concrete legal effect, but the source and legal status must be identified.

UPSC traps

- Wrong: DPSP are legally irrelevant because non-justiciable.

Correct: They are constitutionally fundamental in governance and guide law and interpretation.

- Wrong: Rights always defeat social reform.

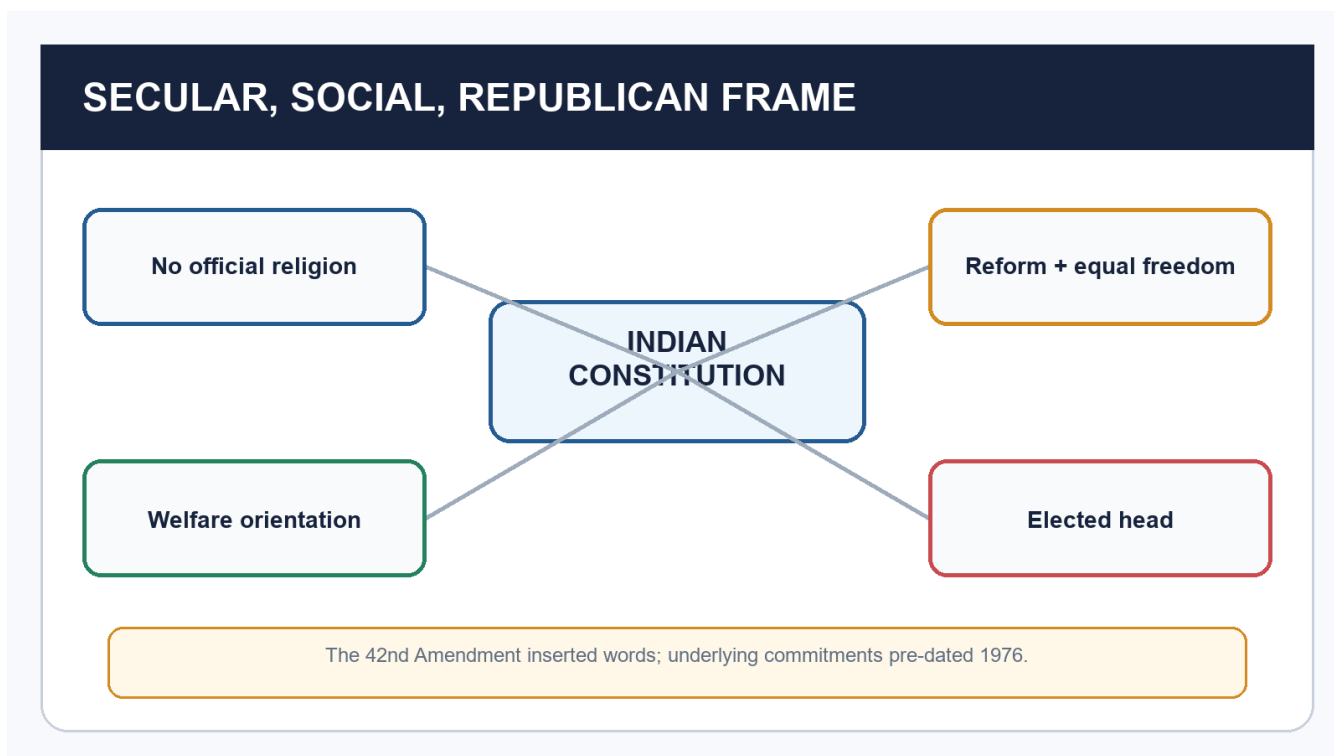
Correct: Constitutional adjudication seeks rights-compatible reform and balance.

Cross-link: Owner links: Fundamental Rights (07), DPSP (08), Fundamental Duties (09).

11. Secular, socialist, democratic republic; dignity and fraternity

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (CORE ARGUMENT): Indian secularism protects equal citizenship and freedom of conscience through principled state engagement, not a theocratic order or an absolute wall of separation.

[FACT] India is a sovereign socialist secular democratic republic; the words 'socialist', 'secular' and 'integrity' were inserted in the Preamble by the 42nd Amendment in 1976, while related constitutional commitments pre-dated the insertion.



Secular, socialist, democratic republic; dignity and fraternity

Caption: The 42nd Amendment inserted words; underlying commitments pre-dated 1976. Original deterministic schematic prepared for this package.

Commitment	Precise meaning	Caveat
Secular	No official religion; equal freedom, non-discrimination and reform-oriented engagement	Not identical to a strict wall-of-separation model
Socialist	Democratic welfare and distributive-justice orientation	Not a command for one fixed economic system
Democratic	Universal franchise, representation, responsibility and rights	Elections require constitutional limits and institutional fairness
Republic	Elected, non-hereditary head of State	Does not itself describe the full democratic system
Dignity and fraternity	Individual worth, common citizenship and unity	Must be connected to rights and social equality

Teaching and analysis

- [FACT] Articles 14-16 and 25-30, along with the Preamble, supply central secular anchors. The State may regulate secular aspects and pursue reform while protecting conscience and denominational rights within constitutional limits.

- [ANALYSIS] Indian secularism manages principled distance and equal citizenship in a multi-religious society; it neither creates a theocratic State nor demands complete institutional non-contact.
- [ANALYSIS] Democratic republic joins electoral equality to responsible government and constitutional remedies. Franchise gives political voice; rights and institutions prevent majority rule from becoming unlimited.
- [ANALYSIS] Socialist and welfare orientation is expressed through distributive and social-justice goals, not through constitutional freezing of a particular policy instrument.
- [FACT] Dignity links liberty and equality at the level of the person; fraternity connects them to social solidarity and national unity.
- [LIMIT] Topic 04 owns the Preamble's full text, history, interpretation and amendability.

UPSC traps

- Wrong: 'Secular' and 'socialist' first became constitutional ideas in 1976.

Correct: The words were inserted in 1976; underlying provisions and commitments already existed.

- Wrong: Indian secularism requires total State withdrawal from religion.

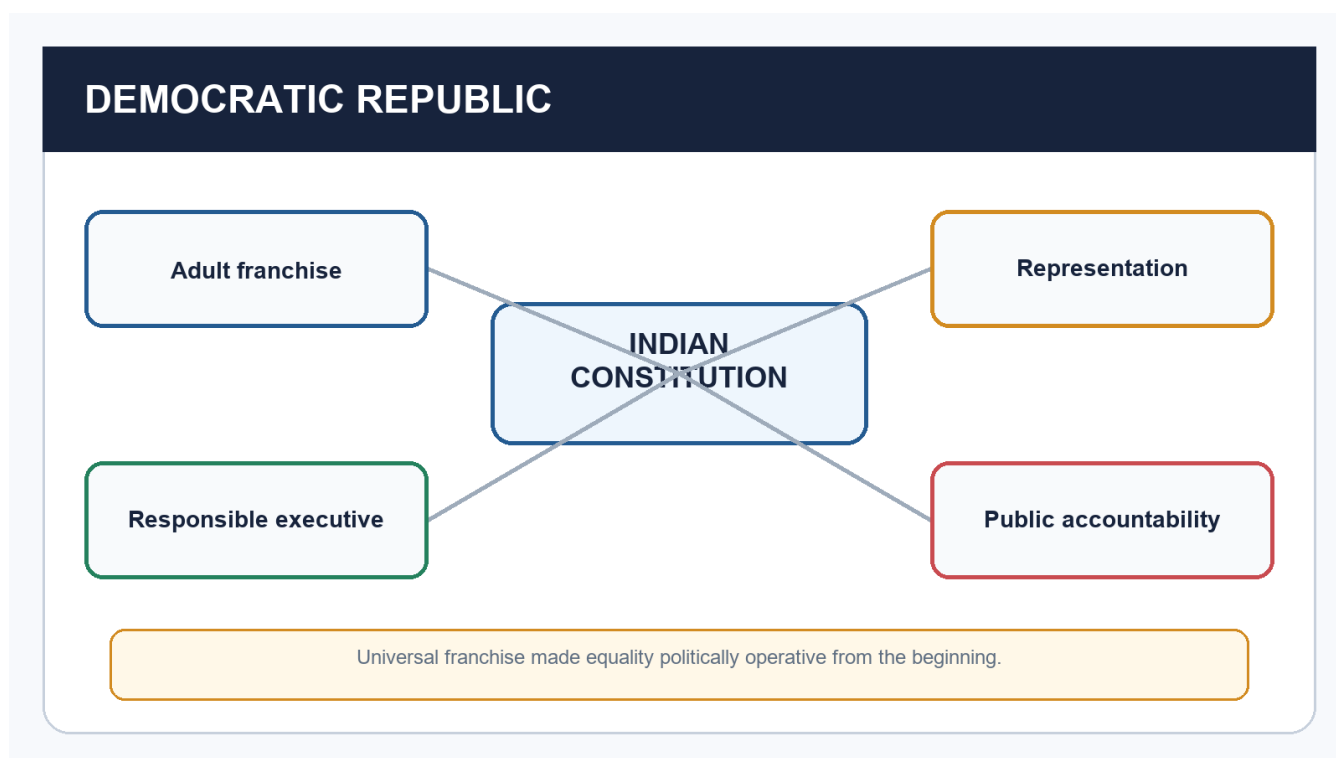
Correct: The Constitution permits regulated engagement for equality, reform and protection.

Cross-link: Owner links: Preamble (04), Rights (07), DPSP (08), Social Justice owners.

12. Universal adult franchise, representative democracy and bicameralism

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (CORE ARGUMENT): Universal adult franchise constitutionalised equal political membership from the beginning, while representative institutions translate that equality into accountable government.

[FACT] Universal adult franchise established equal political membership from the Constitution's commencement, while representative institutions and bicameralism channel that equality into government.



Universal adult franchise, representative democracy and bicameralism

Caption: Universal franchise made equality politically operative from the beginning. Original deterministic schematic prepared for this package.

Element	Design contribution	Qualification
Adult franchise	Equal vote without property, literacy, caste, religion or sex qualification, subject to law	Voting age reduced from 21 to 18 by 61st Amendment

Element	Design contribution	Qualification
Lok Sabha / Assemblies	Direct territorial representation and government confidence	Representation quality depends on elections, parties and deliberation
Rajya Sabha	Federal and revising chamber with continuity	States are not equally represented
Republican accountability	Offices derive legitimacy from constitutional processes	Electoral victory remains constitutionally limited

Teaching and analysis

- [FACT] Adopting universal franchise amid poverty, inequality and low literacy was a transformative commitment to political equality, not a later reward for social development.
- [FACT] The 61st Amendment Act, 1988 reduced the voting age from 21 to 18, operating for elections from 1989.
- [ANALYSIS] Representative democracy converts popular sovereignty into periodic authorisation, deliberation, law-making and accountability. It needs independent election administration and meaningful legislative scrutiny.
- [ANALYSIS] Bicameralism adds revision, continuity and a territorial voice. Its performance depends on party systems and respect for each House's constitutional role.
- [LIMIT] Rajya Sabha is a federal chamber, but it does not reproduce the equal-State representation of the United States Senate.
- [LIMIT] Election law, delimitation, representation and parliamentary procedure belong to specialist owners.

UPSC traps

- Wrong: Voting age was 18 in the original Constitution.

Correct: It was 21, reduced to 18 by the 61st Amendment.

- Wrong: Bicameralism means both Houses have identical powers.

Correct: The Constitution creates important asymmetries, especially for confidence and money bills.

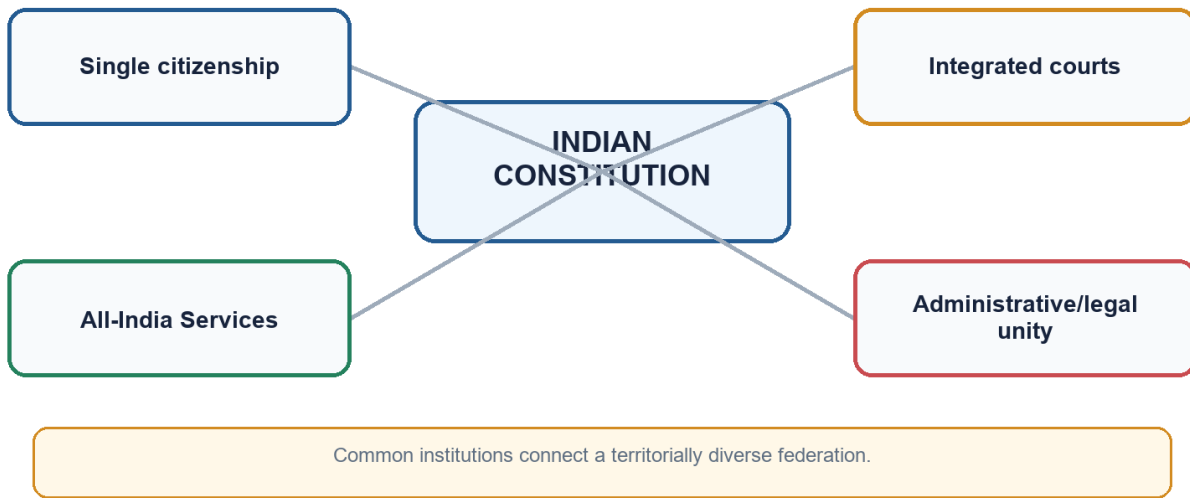
Cross-link: Owner links: Parliament (17), Election Commission (27), Representation/election-law material.

13. Single citizenship, administrative/legal unity and All-India Services

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (CORE ARGUMENT): Single citizenship, integrated courts and All-India Services create administrative and legal unity within, not instead of, a federal polity.

[FACT] A federal distribution of government coexists with single Indian citizenship, an integrated judiciary, common constitutional institutions and All-India Services, creating substantial administrative and legal unity.

INTEGRATED UNION



Single citizenship, administrative/legal unity and All-India Services

Caption: Common institutions connect a territorially diverse federation. Original deterministic schematic prepared for this package.

Integrating device	Function	Federal tension
Single citizenship	Equal national membership across States	Residence-based rules may still exist where constitutionally/lawfully permitted
Integrated judiciary	Common hierarchy applies Union and State law	Central legal unity must respect State competence
All-India Services	Common recruitment with service in Union and States	Supports standards but raises control/autonomy questions
Constitutional audit/election/service bodies	Common integrity framework	Independence and federal consultation remain essential

Teaching and analysis

- [FACT] Unlike the United States model of dual citizenship, the Constitution provides single Indian citizenship despite a dual polity.
- [ANALYSIS] Single citizenship supports mobility, common political identity and equal civil membership; it does not erase India's linguistic, cultural or State identities.
- [FACT] All-India Services are a distinctive bridge: officers are recruited through a common system and serve under both Union and State arrangements.
- [ANALYSIS] Administrative unity helps coordination, minimum standards and national programmes, but central personnel influence can produce State-autonomy concerns.
- [ANALYSIS] Legal unity also comes from one Constitution for the general Union-State order, integrated courts and common constitutional remedies.
- [LIMIT] Citizenship acquisition, termination, OCI and contemporary citizenship law belong to Topic 06; public-service detail belongs to Topic 41.

UPSC traps

- Wrong: Single citizenship makes India unitary.

Correct: It is one integrating feature inside a federal constitutional structure.

- Wrong: All-India Services are exclusively Union services.

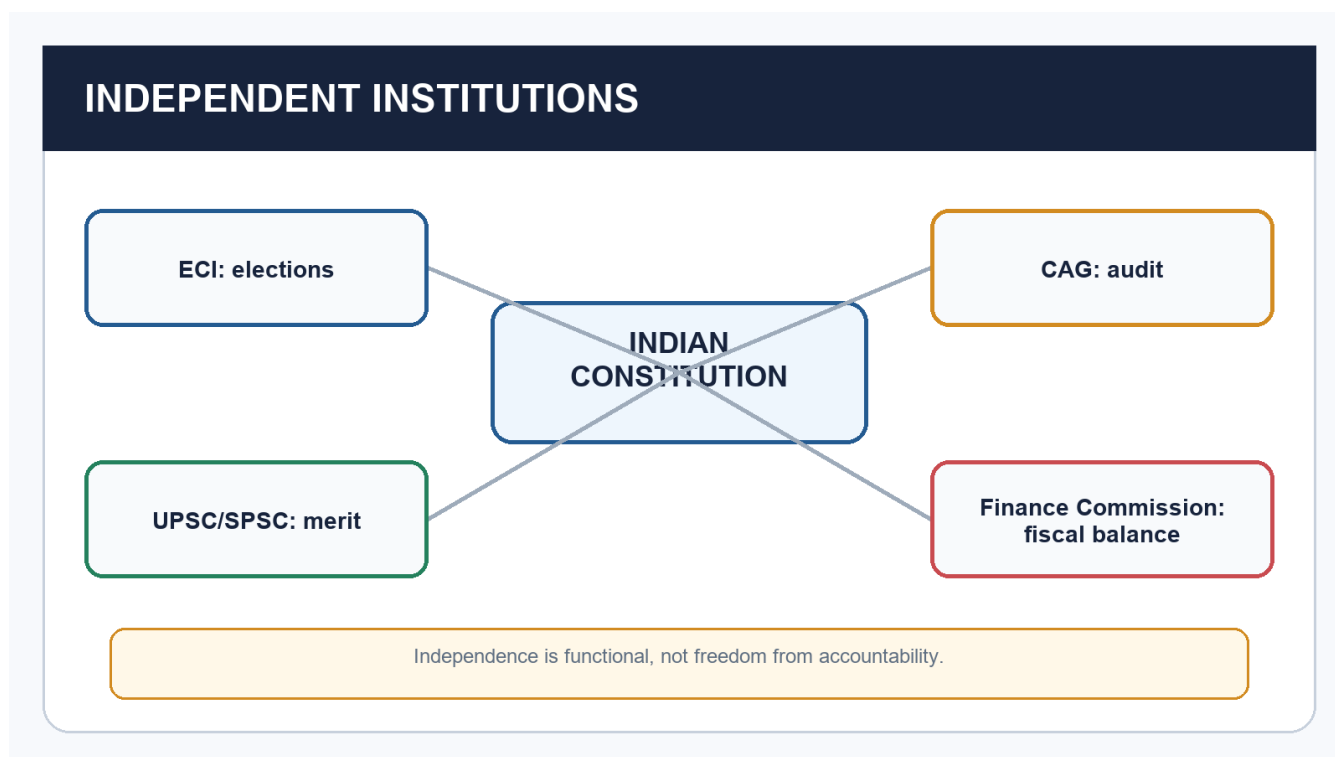
Correct: They institutionally connect Union recruitment/standards with State administration.

Cross-link: Owner links: Citizenship (06), Public Services (41), Federal System (12).

14. Independent constitutional bodies and accountability ecosystem

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (CORE ARGUMENT): Independent constitutional bodies disperse integrity functions outside ordinary executive control, but functional independence must coexist with transparency, reasons and review.

[FACT] The Constitution disperses integrity functions among specialised bodies so elections, audit, recruitment and fiscal distribution are not left to the ordinary executive alone.



Independent constitutional bodies and accountability ecosystem

Caption: Independence is functional, not freedom from accountability. Original deterministic schematic prepared for this package.

Body	Constitutional function	Independence logic
Election Commission	Superintendence, direction and control of elections within Article 324's field	Protected constitutional status; appointment and conditions remain live design questions
CAG	Audits public accounts and reports through constitutional channels	Tenure/service protections and charged expenditure
UPSC / SPSC	Merit-based recruitment advice and specified service functions	Constitutional tenure and removal safeguards
Finance Commission	Periodic recommendations on Union-State fiscal distribution	Independent expert constitutional commission

Teaching and analysis

- [FACT] These are constitutional bodies, unlike institutions created only by statute or executive resolution. Their source, composition, tenure and powers differ and must not be homogenised.
- [ANALYSIS] Functional independence reduces conflicts of interest: incumbents should not exclusively control electoral administration, executive spending should face external audit, and recruitment/fiscal recommendations need institutional credibility.

- [ANALYSIS] Independence is compatible with transparency, reasons, reporting, legislative scrutiny and judicial review. Unaccountable insulation is not the constitutional ideal.
- [FACT] The CAG is conventionally described as guardian of the public purse; the Election Commission anchors electoral integrity; Public Service Commissions support merit; Finance Commissions structure vertical and horizontal fiscal recommendations.
- [LIMIT] This overview does not reproduce appointment controversies, detailed powers or recent commission formulas. Each body has a specialist owner.
- [LIMIT] Do not call every 'commission' constitutional or every constitutional body a court.

UPSC traps

- Wrong: All independent bodies have identical safeguards.

Correct: Their text, appointment, removal and functions differ.

- Wrong: Independence means no accountability.

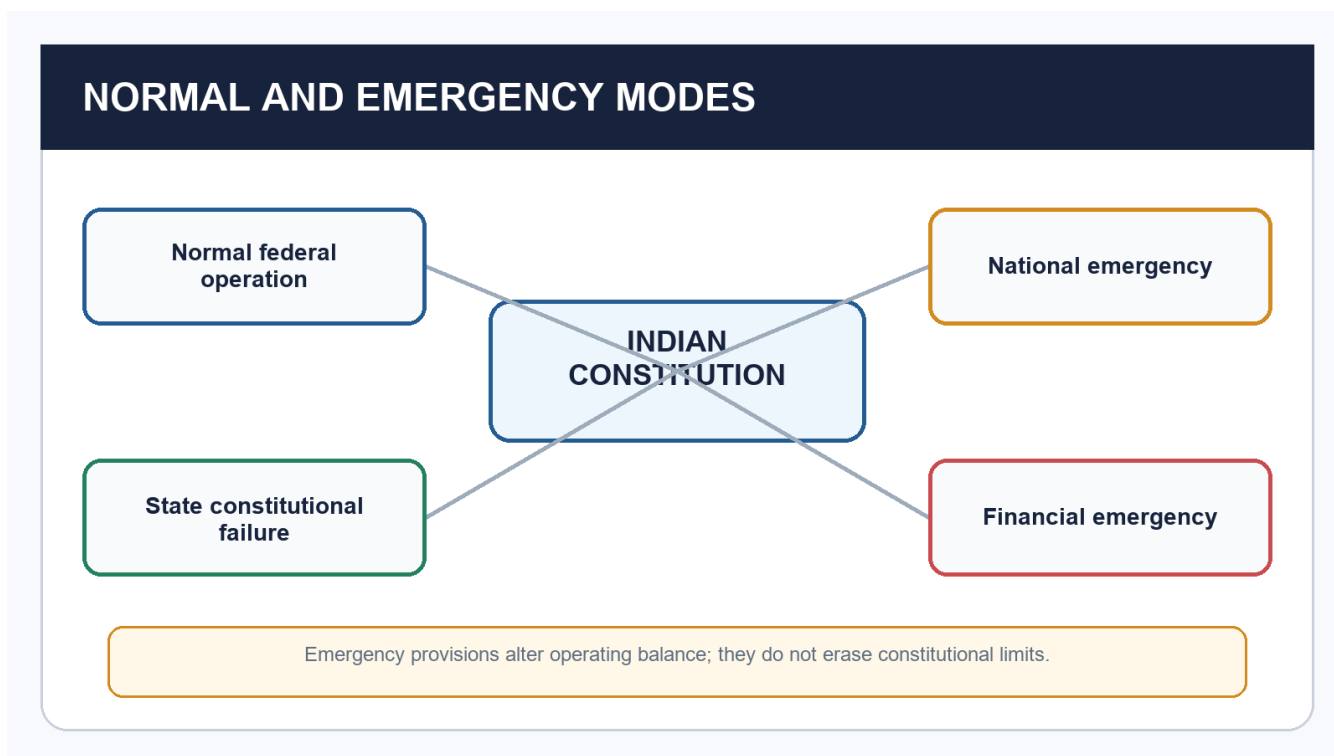
Correct: Independence protects function; reporting, review and public reason remain necessary.

Cross-link: Owner links: ECI (27), UPSC/SPSC (28), Finance Commission (29), CAG (32).

15. Emergency provisions and constitutional modes

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (CORE ARGUMENT): Emergency provisions permit temporary constitutional centralisation for crisis management, but they do not authorise permanent unitary rule or extra-constitutional government.

[FACT] Emergency provisions allow exceptional centralisation and altered rights/fiscal operation under specified conditions; they are constitutional powers subject to textual procedure and post-1975 safeguards.



Emergency provisions and constitutional modes

Caption: Emergency provisions alter operating balance; they do not erase constitutional limits. Original deterministic schematic prepared for this package.

Emergency	Article	Design effect
National Emergency	352	Enhanced Union authority and specified consequences for federal and rights operation

Emergency	Article	Design effect
State constitutional failure	356, read with 355 and related provisions	Union assumes constitutionally specified State functions subject to approval and review
Financial Emergency	360	Directions affecting financial propriety and specified service conditions
Rights safeguards	358-359 framework	Effects vary by right, ground and order; Articles 20 and 21 receive protection after 44th Amendment

Teaching and analysis

- [FACT] The Constitution recognises national emergency, failure of constitutional machinery in a State and financial emergency. Their triggers and effects are not interchangeable.
- [ANALYSIS] Emergency design reflects the founding concern that a territorially diverse new State required crisis capacity. It enables temporary centralisation without formally rewriting the federal Constitution.
- [FACT] The 44th Amendment tightened safeguards after the 1975-77 Emergency, including replacing 'internal disturbance' with 'armed rebellion' for Article 352 and protecting Articles 20 and 21 from suspension under Article 359 orders.
- [ANALYSIS] The central tension is survival versus abuse: emergency power may protect constitutional order, but it can also suppress opposition, liberty and federal autonomy.
- [LIMIT] A proclamation is not beyond judicial review, and emergency does not create an extra-constitutional government.
- [LIMIT] Topic 14 owns procedure, duration, approval, effects and case law; this section explains the feature only.

UPSC traps

- Wrong: Emergency converts India permanently into a unitary State.

Correct: It changes operation temporarily within the Constitution.

- Wrong: All Fundamental Rights automatically disappear.

Correct: Effects differ; Articles 20 and 21 cannot be suspended through Article 359.

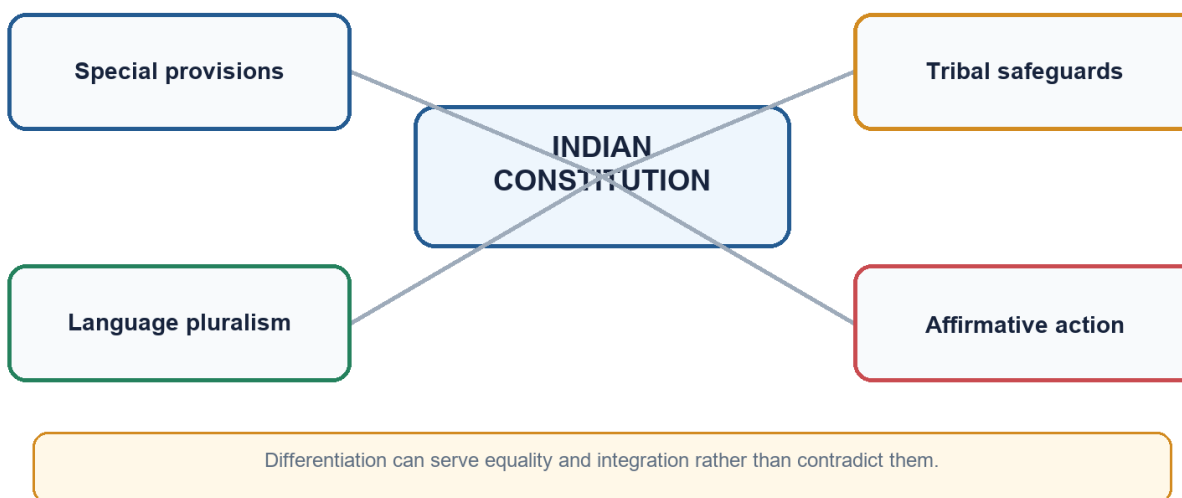
Cross-link: Owner link: Emergency Provisions (14).

16. Local self-government, social justice and affirmative action

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (CORE ARGUMENT): The 73rd and 74th Amendments deepened democracy by constitutionalising a third tier, yet real decentralisation still depends on functions, funds and functionaries.

[FACT] Democratic decentralisation and affirmative-action provisions deepen representative equality; the present constitutional third tier is primarily a later constitutionalisation through the 73rd and 74th Amendments.

UNITY THROUGH ACCOMMODATION



Local self-government, social justice and affirmative action

Caption: Differentiation can serve equality and integration rather than contradict them. Original deterministic schematic prepared for this package.

Dimension	Constitutional movement	Qualification
Panchayats	73rd Amendment, Part IX, Eleventh Schedule	Effective devolution depends on State law, functions, funds and functionaries
Municipalities	74th Amendment, Part IX-A, Twelfth Schedule	Urban capacity and metropolitan coordination remain uneven
Affirmative action	Equality provisions permit/require differentiated measures in specified fields	Classification and design remain constitutionally reviewable
Social revolution	Rights plus DPSP seek status equality and material capability	Constitutional promise needs legislation and administration

Teaching and analysis

- [FACT] The original Constitution included a directive concerning village panchayats, but today's detailed constitutional local-government structure was added in 1992 through the 73rd and 74th Amendments.
- [ANALYSIS] Local constitutionalisation widens participation, creates regular electoral institutions and can improve context-sensitive service delivery.
- [ANALYSIS] Formal third-tier status does not guarantee autonomy. Fiscal dependence, weak staffing, incomplete activity mapping and State control can create 'decentralisation on paper'.
- [FACT] Affirmative action is not a departure from equality understood only as identical treatment; it is part of substantive equality where historical disadvantage and representation are constitutionally relevant.
- [ANALYSIS] Welfare-state and social-revolution orientation joins political democracy to social and economic transformation.
- [LIMIT] Reservation categories, ceilings, local-body composition and case law belong to specialist Rights, Parliament, Social Justice and Local Government owners.

UPSC traps

- Wrong: The current local-government scheme was fully original in 1950.

Correct: Detailed Parts IX and IX-A were inserted by the 73rd and 74th Amendments.

- Wrong: Affirmative action contradicts equality by definition.

Correct: The Constitution contains substantive-equality authorisations subject to limits.

Cross-link: Owner links: Panchayati Raj (23), Municipalities (24), Fundamental Rights (07).

16A. Cooperative societies as constitutionalised democratic association

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (FEDERAL LIMIT): The cooperative-society provisions constitutionalise voluntary and democratic association, while federal competence limits Part IX-B's operation for State cooperatives.

[FACT] The 97th Amendment inserted cooperative societies into Article 19(1)(c), added Article 43B and inserted Part IX-B.

COOPERATIVE SOCIETIES: RIGHT, DIRECTIVE, GOVERNANCE AND FEDERAL LIMIT

ARTICLE 19(1)(c)

Right to form associations, unions or cooperative societies. Formation remains subject to constitutionally valid regulation.

ARTICLE 43B

State should promote voluntary formation, autonomous functioning, democratic control and professional management.

PART IX-B

Governance framework inserted by the 97th Amendment. Its operation must respect legislative competence and ratification.

RAJENDRA N. SHAH

State-cooperative field invalidated for want of ratification. Multi-State field and Articles 19(1)(c)/43B survive.

The cooperative-society provisions constitutionalise voluntary and democratic association, while federal competence limits Part IX-B's operation for State cooperatives.

Cooperative-society constitutional status

Caption: The right, directive and governance framework operate within the Constitution's federal distribution of legislative competence.

Layer	Position	Exam-safe qualification
Article 19(1)(c)	Right to form associations, unions or cooperative societies	Formation does not remove lawful regulation
Article 43B	DPSP promoting voluntary formation, autonomy, democratic control and professional management	Non-justiciable but fundamental in governance
Part IX-B	Constitutional governance framework	Federal competence controls its reach
<i>Union of India v. Rajendra N. Shah</i> (2021)	State-cooperative application invalid for want of State ratification; multi-State operation survived	Do not say the whole 97th Amendment was struck down

Teaching and analysis

- [FACT][LIVE OFFICIAL - checked 21 August 2026] The Supreme Court judgment remains the controlling legal position: Article 19(1)(c) and Article 43B survive, while Part IX-B cannot govern State cooperatives in the invalidated field; the Union retains competence over multi-State cooperative societies.

- [ANALYSIS] The feature joins associational freedom, democratic governance and economic organisation, while illustrating that even a reform-oriented amendment must respect federal ratification requirements.
- [LIMIT] Detailed registration, elections, audit and the Multi-State Cooperative Societies Act belong to Topic 39.

UPSC traps

- Wrong: *Rajendra N. Shah* invalidated Article 43B.

Correct: The judgment preserved Article 19(1)(c) and Article 43B.

- Wrong: Part IX-B now governs every State cooperative.

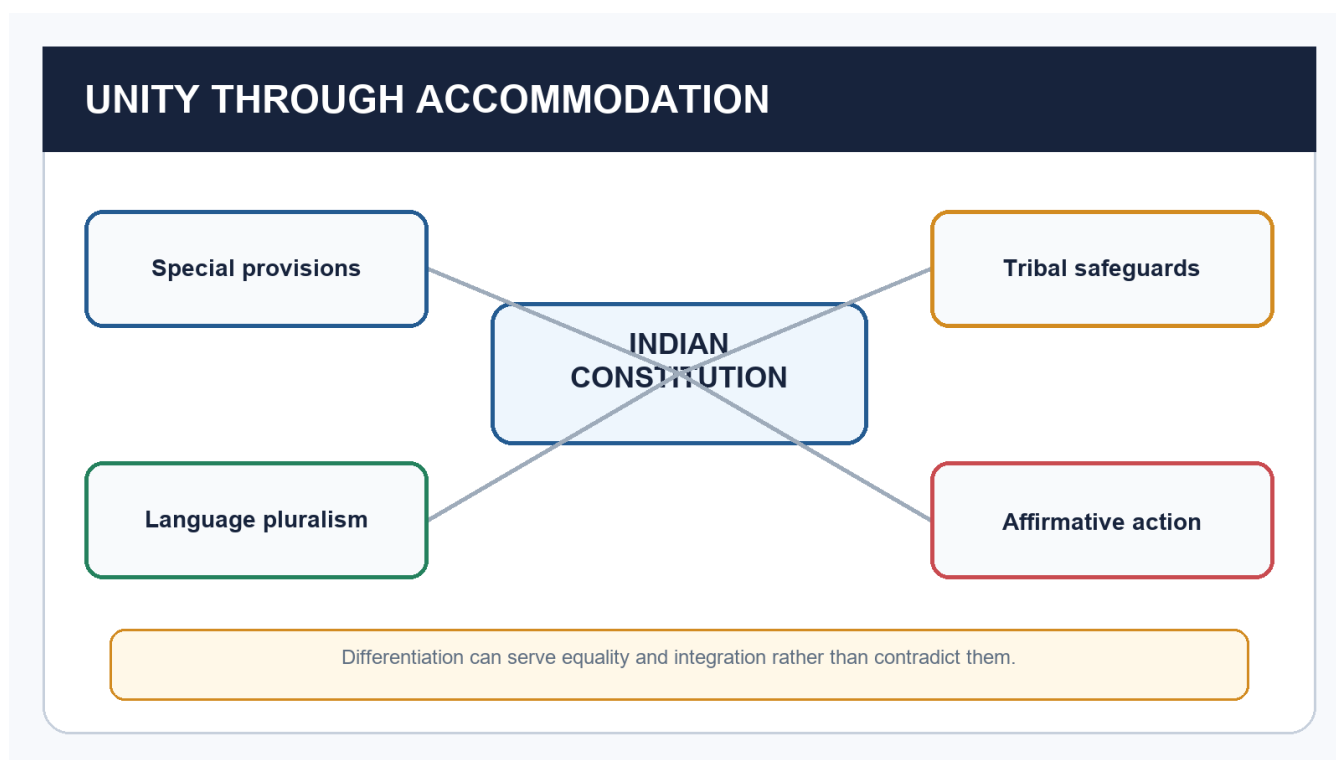
Correct: Its operation is bounded by the judgment and legislative competence.

Cross-link: Cooperative Societies (Topic 39); Amendment and Basic Structure (Topic 10); Federal System (Topic 12).

17. Asymmetry, language, pluralism and accommodation of diversity

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (ANALYTICAL TRANSITION): Constitutional asymmetry uses differentiated territorial, tribal, cultural and linguistic arrangements to pursue integration through accommodation rather than coerced uniformity.

[FACT] The Constitution combines common citizenship with differentiated territorial, tribal, cultural and linguistic arrangements; unity is pursued through accommodation as well as uniform rules.



Asymmetry, language, pluralism and accommodation of diversity

Caption: Differentiation can serve equality and integration rather than contradict them. Original deterministic schematic prepared for this package.

Mechanism	Purpose	Risk / balance
Special provisions for States/regions	Respond to historical and institutional distinctiveness	Differentiation needs constitutional justification and clarity
Fifth and Sixth Schedule arrangements	Protect Scheduled Areas and specified tribal autonomy	Autonomy must connect with rights and accountable governance
Language framework	Permit Union, State and linguistic-minority arrangements	Language can integrate or generate exclusion

Mechanism	Purpose	Risk / balance
Cultural and educational rights	Protect distinct language, script, culture and minority institutions	Rights coexist with regulatory standards
Affirmative representation	Address exclusion in specified institutions	Design must remain within constitutional boundaries

Teaching and analysis

- [FACT] India does not adopt one-language or one-institution uniformity as the sole method of nation-building. It recognises official-language arrangements, linguistic minorities and cultural rights.
- [ANALYSIS] Asymmetry may strengthen integration by allowing groups to remain within a shared constitutional order without surrendering all institutional distinctiveness.
- [ANALYSIS] Uniformity can promote equal national standards, while asymmetry can protect substantive equality and negotiated trust. The constitutional task is principled calibration.
- [FACT] Special provisions and Scheduled/Tribal Area arrangements arise from different Articles and Schedules; they must not be collapsed into one generic 'special status'.
- [ANALYSIS] Fraternity is especially important here: common citizenship must be experienced as equal respect, not coerced sameness.
- [FACT][LIVE OFFICIAL - checked 21 August 2026] The Supreme Court's 11 December 2023 Article 370 judgment upheld the 2019 constitutional changes and directed restoration of Jammu and Kashmir's statehood at the earliest without fixing a deadline. Official Union records checked for this package continue to treat Jammu and Kashmir as a Union Territory with a legislature. [LIMIT] This feature overview does not reconstruct the specialist doctrine or predict restoration timing.

UPSC traps

- Wrong: Asymmetry means unequal citizenship.

Correct: It can differentiate governmental arrangements while preserving common citizenship and rights.

- Wrong: Hindi is the national language under the Constitution.

Correct: The Constitution provides an official-language framework; it does not declare a national language.

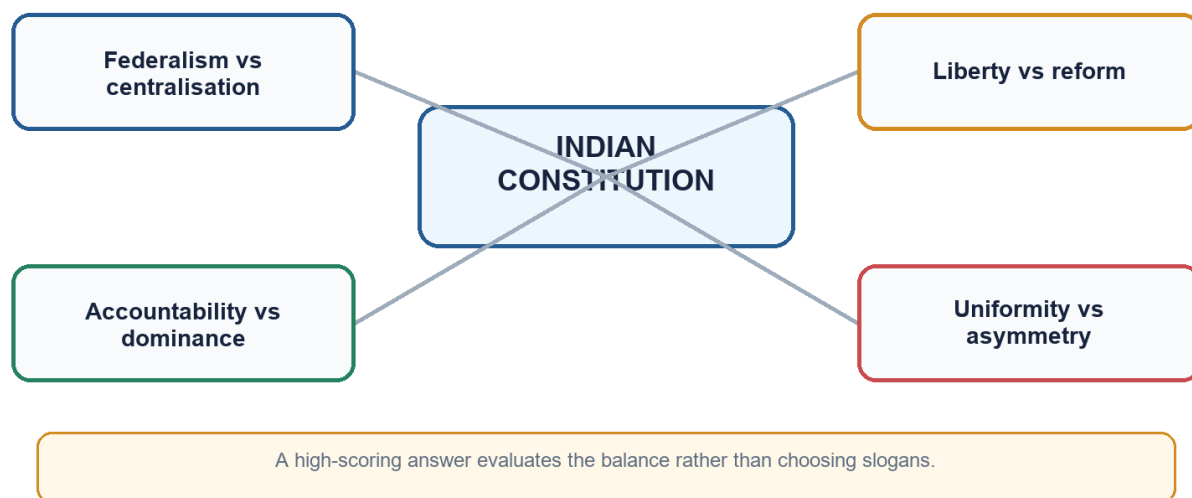
Cross-link: Owner links: Special Provisions (22), Scheduled and Tribal Areas (26), Official Language (40).

18. Continuity, transformation, strengths and internal tensions

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (TRANSFORMATION VERDICT): The Constitution retained administrative machinery from colonial rule but transformed its legitimacy through popular sovereignty, rights, universal franchise and responsible government.

[ANALYSIS] The Constitution's distinctiveness lies less in isolated devices than in a transformative recombination: inherited administrative capacity was subjected to popular sovereignty, rights, representation and social-justice goals.

INTERNAL TENSIONS



Continuity, transformation, strengths and internal tensions

Caption: A high-scoring answer evaluates the balance rather than choosing slogans. Original deterministic schematic prepared for this package.

Tension	Strength	Criticism / answer qualification
Federalism vs centralisation	National coordination and crisis capacity	Governor, fiscal and emergency practices may weaken autonomy
Liberty vs social reform	Rights coexist with transformative legislation	Restrictions and reform need proportional constitutional justification
Accountability vs executive dominance	Collective responsibility enables removal	Party discipline and majorities can hollow scrutiny
Detail vs complexity	Clarity and accommodation	Legalism and amendment dependence
Review vs democratic legitimacy	Protects supremacy and minorities	Judicial overreach and appointment concerns
Uniformity vs asymmetry	Common standards plus diversity accommodation	Differentiation may become opaque or politically contested

Teaching and analysis

- [FACT] The Government of India Act, 1935 contributed institutional and administrative continuity, but the Constitution changed the source and ends of authority through republicanism, universal franchise, rights and accountable government.
- [ANALYSIS] Strengths include a durable framework, peaceful political competition, judicial remedies, adaptable amendment, multilevel government and social transformation commitments.
- [ANALYSIS] Criticisms include centralisation, executive dominance, excessive detail, weak local devolution, rights-emergency vulnerability, judicial-democratic tension and implementation gaps.
- [FACT] Constitutional morality, in Ambedkar's use drawing on George Grote, concerns disciplined respect for constitutional forms, methods and values rather than personal or majoritarian morality.
- [ANALYSIS] Constitutional morality is useful when tied to text, structure, accountability, minority protection and restraint; untethered invocation risks subjective judicial or political preference.
- [LIMIT] A conclusion should be graded: the design creates capacity and restraint, but institutional practice determines the balance. Avoid 'perfect synthesis' and 'complete failure' claims.

UPSC traps

- Wrong: Constitutional morality means judges' personal moral view.

Correct: It must be anchored in constitutional text, structure, methods and values.

- Wrong: Continuity with 1935 proves colonial copying.

Correct: Administrative continuity was transformed by democratic authority and rights.

Cross-link: Direct owner of 2021 GS-II constitutional-morality PYQ; cross-link Topic 02 and Topic 10.

18A. Constitutional morality as the operating ethic

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (ANALYTICAL TRANSITION): Constitutional morality is fidelity to constitutional forms, values and restraint; it must discipline power through text and structure rather than become a label for personal preference.

[ANALYSIS] Constitutional morality means disciplined fidelity to constitutional forms, procedures and values over personal, partisan or majoritarian preference.

CONSTITUTIONAL MORALITY: FROM TEXT TO RESTRAINED PUBLIC POWER

TEXT

Preamble; equality, liberty, dignity, conscience and due constitutional procedure.

INSTITUTIONS

Respect for representative responsibility, federal balance, review and assigned constitutional roles.

RESTRAINT

Reasons, accountability, minority protection and refusal to equate majority preference with constitutional validity.

LIMIT

Not personal judicial morality. The doctrine must remain anchored in constitutional text, structure and precedent.

Constitutional morality is fidelity to constitutional forms, values and restraint; it must discipline power through text and structure rather than become a label for personal preference.

Constitutional morality as operating ethic

Caption: Text supplies authority; constitutional morality supplies restraint, justification and inclusion in practice.

Facet	Constitutional anchor	Illustration
Rule-bound power	Preamble; Articles 14, 19 and 21	Public authority must offer constitutionally valid reasons
Institutional fidelity	Responsible government, federalism, judicial review	Constitutional actors respect roles and procedures
Minority and individual protection	Equality, dignity, conscience and liberty	<i>Navtej Singh Johar</i> (2018) preferred constitutional over exclusionary social morality
Accountability and restraint	Cabinet responsibility, review and reasoned decisions	<i>Government of NCT of Delhi</i> (2018) linked morality to democratic and federal functioning

Teaching and analysis

- [FACT] Ambedkar used the expression, drawing on George Grote, to stress that constitutional government requires habits of restraint rather than text alone.
- [FACT] The 2021 GS-II PYQ requires the doctrine to be explained through relevant judicial decisions.
- [LIMIT] Constitutional morality is not a free-floating licence for judges or political actors; it must remain anchored in constitutional text and structure.

UPSC traps

- Wrong: Constitutional morality equals current social morality.

Correct: It may protect constitutional rights against majoritarian social preference.

- Wrong: The phrase authorises personal judicial morality.

Correct: Its legitimacy depends on text-linked and institutionally disciplined reasoning.

Cross-link: Direct owner of 2021 GS-II Q1; deeper case doctrine belongs to Fundamental Rights and Supreme Court owners.

19. Eighth-edition integration: constitution, constitutional law and constitutionalism

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (CORE ARGUMENT): A Constitution creates public power, constitutional law governs it and constitutionalism asks whether effective limits, accountability and remedies actually operate.

[FACT] The eighth edition separates the **Concept of the Constitution** from the later catalogue of salient features. The distinction improves answer precision:

Concept	Exam-safe meaning	Evidence anchor
Constitution	Fundamental framework that creates institutions, distributes power, protects rights and prescribes change	Articles 1, 79, 124, 245-255 and 368 illustrate different functions
Constitutional law	Wider body of rules governing public power, including constitutional text, binding judgments and valid implementing law	Articles 13, 32, 141 and 226
Constitutionalism	Effective limitation and accountability of public power under law	Rights, judicial review, responsible government, federalism and basic structure

[ANALYSIS] A high-scoring salient-features answer should move from **design** to **operation**. Written supremacy, federal allocation or parliamentary responsibility describe constitutional design; constitutionalism asks whether those devices actually restrain arbitrariness and provide remedies.

[FACT] India is best classified through paired qualifications: enacted but evolutionary in operation; codified but supported by conventions; partly rigid and partly flexible; federal with centralising features; procedural and transformative.

[LIMIT] Classification is an analytical tool, not constitutional text. Do not treat "federal", "quasi-federal", "transformative" or "constitutionalism" as self-executing labels.

Answer-writing evidence chain

- **Claim:** The Constitution both creates and limits public power.
- **Named evidence:** Articles 79 and 124 constitute Parliament and the Supreme Court; Articles 13, 32 and 226 make public action reviewable.
- **Analysis:** Authority and restraint originate in the same supreme framework, distinguishing Indian constitutional government from unlimited parliamentary sovereignty.
- **Qualification:** Text alone does not guarantee constitutionalism; conventions, institutional capacity, access to remedies and compliance determine whether limits operate.

Cross-link: New Core owner basic/Concept-of-the-Constitution.md; this package retains the feature-level application rather than duplicating the full conceptual chapter.

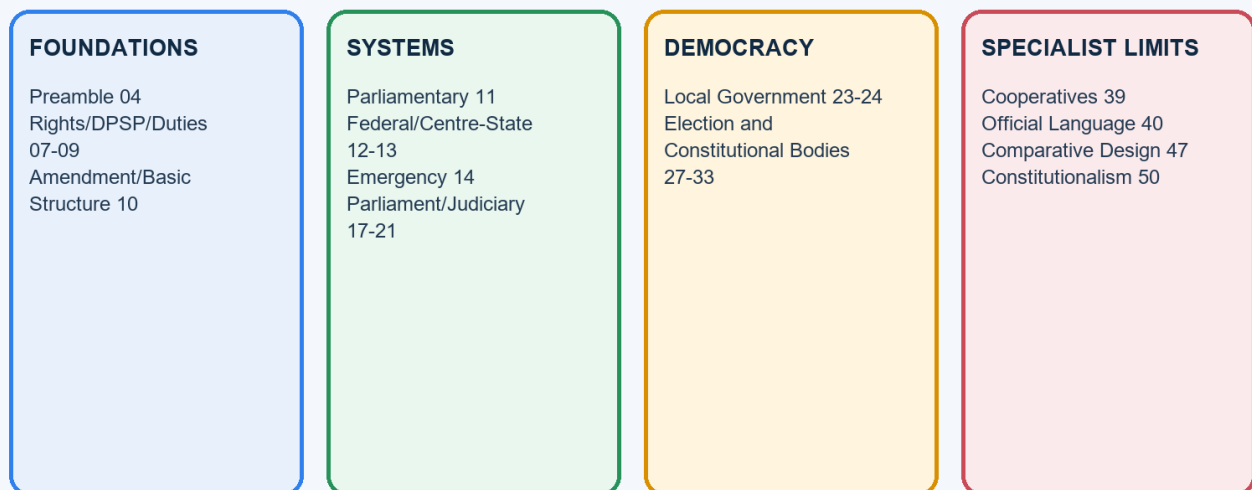
20. Criticisms, counterarguments, cross-topic boundaries and final verdict

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (CRITICISM): The Constitution's tensions are not design failures by definition; they become failures when central capacity defeats federalism, majority rule defeats rights or institutional independence escapes accountability.

Criticism	Best counterargument	Residual caution
'Bag of borrowings'	Adaptation and rejection show constitutional choice	Administrative continuities can still reproduce centralising habits
Strong Centre destroys federalism	Federal fields, State governments and judicial review remain constitutionally real	Governor, fiscal and emergency practice can weaken autonomy
Parliamentary government guarantees accountability	Confidence and collective responsibility enable removal	Party discipline and large majorities may hollow scrutiny
Judicial review protects constitutionalism	Review enforces rights and competence	Independence must coexist with reasons, restraint and accountability
Detail guarantees implementation	Detail clarifies institutions and accommodation	Text cannot substitute for capacity, conventions or constitutional morality
Asymmetry violates equality	Differentiation can protect substantive equality and integration	It requires principled justification and transparent operation

Cross-topic boundary map

TOPIC 03 IS THE ARCHITECTURE MAP — SPECIALIST OWNERS SUPPLY DOCTRINAL



The Constitution's tensions are not design failures by definition; they become failures when central capacity defeats federalism, majority rule defeats rights or institutional independence escapes accountability.

Cross-topic boundaries

Caption: Topic 03 supplies the architectural overview; specialist owners supply detailed doctrine and procedure.

- [LIMIT] Preamble text and amendability -> Topic 04.
- [LIMIT] Rights, DPSP and Duties doctrine -> Topics 07-09.
- [LIMIT] Amendment and basic structure -> Topic 10.
- [LIMIT] Parliamentary, federal, judicial, emergency and local-government procedure -> Topics 11-24.
- [LIMIT] Constitutional-body appointments and powers -> Topics 27-33.

- [LIMIT] Cooperative-society operational law -> Topic 39.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM (FINAL VERDICT): The Indian Constitution is a carefully adapted architecture of authority, restraint, representation and transformation whose success depends as much on constitutional morality and institutions as on text.

[ANALYSIS] A high-scoring conclusion evaluates the balance rather than labelling India wholly federal, wholly unitary, wholly borrowed or wholly original.

BASIC MCQS / REMEDIATION

Practice rule and exact option rotation

The 48 questions form one continuous sequence. Correct answers rotate exactly A -> B -> C -> D twelve times, without repetition or reset.

40 core diagnostic MCQs

Core MCQ 1

Question. Which description best captures a salient constitutional feature?

- A. A system-level characteristic produced by interacting rules and institutions
- B. A single Article only
- C. Any political slogan used by a court
- D. A closed list identical to basic structure

Answer: A. A feature explains constitutional design at system level; it is not reducible to one Article or to the basic-structure list.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 2

Question. Which statement about the Constitution's original form is correct?

- A. It began with 25 Parts and 12 Schedules
- B. It contained a Preamble, 395 Articles, 22 Parts and 8 Schedules
- C. It contained about 470 Articles and 12 Schedules
- D. It had no administrative provisions

Answer: B. The historical count is stable and exam-safe: Preamble, 395 Articles, 22 Parts and 8 Schedules.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 3

Question. Why should a learner avoid one unqualified current Article total?

- A. The Constitution contains no Articles
- B. All Articles were repealed in 1950
- C. Inserted, omitted and renumbered provisions make totals counting-method dependent
- D. Only Schedules can be amended

Answer: C. Parts and Schedules are safer current markers; the owner expressly retains the Article-count caveat.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 4

Question. Which is NOT a universal requirement for an Article 368 amendment?

- A. Special majority in Parliament
- B. A majority of total membership plus two-thirds present and voting
- C. State ratification for specified federal matters
- D. A nationwide referendum

Answer: D. India has no universal constitutional referendum requirement.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 5

Question. The most substantial structural source of the Constitution was the:

- A. Government of India Act, 1935
- B. French Constitution alone
- C. Swiss Constitution alone
- D. Charter Act, 1813 alone

Answer: A. The 1935 Act supplied much administrative and institutional architecture, later democratically transformed.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 6

Question. The Concurrent List and joint sitting are conventionally traced to:

- A. Canada
- B. Australia
- C. Ireland
- D. Japan

Answer: B. Australia is the standard source association; Canada is linked to a strong-Centre federation.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 7

Question. Directive Principles of State Policy are conventionally traced to:

- A. United States
- B. USSR
- C. Ireland
- D. South Africa

Answer: C. Ireland is the conventional source for DPSP, nomination to Rajya Sabha and the presidential-election method.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 8

Question. Which borrowed model did India consciously reject?

- A. Cabinet responsibility
- B. Judicial review
- C. Directive Principles
- D. British-style unlimited parliamentary sovereignty

Answer: D. India adopted responsible government but placed Parliament under a written supreme Constitution and judicial review.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 9

Question. Which route illustrates constitutional flexibility outside Article 368?

- A. Simple-majority change for specified matters
- B. Mandatory referendum
- C. Executive order amending any Part
- D. Unanimous State ratification

Answer: A. Some constitution-related changes follow ordinary legislative procedure outside Article 368.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 10

Question. Ratification by at least half the States is required for:

- A. Every amendment
- B. Specified federal provisions under the Article 368 proviso
- C. Only Fundamental Duties
- D. No constitutional amendment

Answer: B. The ratification limb protects specified federal features; it is not universal.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 11

Question. Article 1 describes India as a:

- A. Federation of sovereign States
- B. Confederation
- C. Union of States
- D. Unitary republic

Answer: C. The word is 'Union of States'; the Constitution does not use 'Federation'.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 12

Question. Constitutional asymmetry is best understood as:

- A. A right of States to secede
- B. The end of common citizenship
- C. A temporary emergency only
- D. Differentiated arrangements used to accommodate distinct histories and communities

Answer: D. Asymmetry can support integration while preserving common citizenship and constitutional rights.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 13

Question. At Union level, collective responsibility primarily runs to the:

- A. Lok Sabha
- B. Rajya Sabha

- C. Supreme Court
- D. Election Commission

Answer: A. Article 75 links the Council of Ministers to the House of the People.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 14

Question. Parliamentary fusion means that:

- A. Courts and legislatures are the same body
- B. The executive is drawn from and politically responsible to the legislature
- C. The President personally governs without advice
- D. Judicial review disappears

Answer: B. Fusion describes executive-legislative connection, not the absence of constitutional checks.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 15

Question. In the Indian synthesis of Parliament and courts, ultimate legal supremacy belongs to the:

- A. Cabinet
- B. Supreme Court as an unlimited sovereign
- C. Constitution
- D. Rajya Sabha

Answer: C. Parliament and courts exercise assigned powers; the Constitution remains supreme.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 16

Question. Which claim is incorrect?

- A. Parliament has broad legislative power
- B. Courts exercise judicial review
- C. Amending power is basic-structure limited
- D. Indian Parliament is sovereign in the British sense

Answer: D. Written competence, rights, federalism, review and basic structure reject Westminster-style absolute sovereignty.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 17

Question. Article 50 concerns:

- A. Separation of the judiciary from the executive in State public services
- B. Finance Commission composition
- C. Emergency proclamation
- D. Official language

Answer: A. Article 50 is a DPSP and a key separation-of-powers marker.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 18

Question. Executive ordinance powers are found in:

- A. Articles 32 and 226
- B. Articles 123 and 213
- C. Articles 14 and 15
- D. Articles 324 and 280

Answer: B. The President and Governors exercise constitutionally conditioned ordinance powers under Articles 123 and 213.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 19

Question. Which case directly states that India does not contemplate rigid separation?

- A. S.R. Bommai
- B. Minerva Mills
- C. Ram Jawaya Kapur
- D. Kesavananda alone

Answer: C. Ram Jawaya Kapur is the direct proposition; later basic-structure cases protect separation and review.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 20

Question. Which statement is wrong?

- A. Core functions are differentiated
- B. Overlaps may be constitutional
- C. Checks seek to prevent concentration
- D. India follows absolute organ isolation

Answer: D. India follows functional separation with reciprocal checks, not absolute isolation.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 21

Question. Rule of law primarily rejects:

- A. Arbitrary public power
- B. All delegated legislation
- C. Every restriction on liberty
- D. Judicial remedies

Answer: A. Rule of law requires legal authority, equality, non-arbitrariness and remedies.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 22

Question. A constitutional government is, by definition, a:

- A. Government elected every year
- B. Limited government
- C. Government without courts
- D. Government run only by a legislature

Answer: B. Constitutional government is defined by enforceable limits on authority.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 23

Question. Which cluster most directly enables judicial review and remedies?

- A. Articles 74, 75 and 78
- B. Articles 352, 356 and 360
- C. Articles 13, 32 and 226
- D. Articles 343, 344 and 351

Answer: C. Articles 13, 32 and 226 are central review and remedy anchors.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 24

Question. Judicial independence does NOT mean:

- A. Security from improper influence
- B. Protected institutional conditions
- C. Ability to review unconstitutional action
- D. Judicial sovereignty free from constitutional limits

Answer: D. Independence enables impartial adjudication; it does not remove courts from constitutional limits.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 25

Question. Fundamental Rights are principally:

- A. Justiciable guarantees subject to constitutional restrictions
- B. Non-justiciable directives only
- C. Penal duties of citizens
- D. Temporary conventions

Answer: A. Part III supplies enforceable rights and remedies, though rights are not absolute.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 26

Question. Article 37 describes Directive Principles as:

- A. Judicially enforceable exactly like rights
- B. Non-justiciable but fundamental in governance
- C. Outside the Constitution
- D. Emergency-only provisions

Answer: B. DPSP are non-justiciable but fundamental in governance and must inform State law-making.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 27

Question. Which case is a central authority for harmony between Rights and DPSP?

- A. Ram Jawaya
- B. S.R. Bommai

- C. Minerva Mills
- D. Rajendra N. Shah

Answer: C. Minerva Mills treats balance between Parts III and IV as constitutionally central.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 28

Question. Fundamental Duties are:

- A. Directly enforceable writs in every case
- B. Only State duties
- C. Outside constitutional interpretation
- D. Non-justiciable civic duties that may receive legislative effect

Answer: D. Duties do not automatically create offences; legislation may give particular duties legal effect.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 29

Question. Indian secularism is best described as:

- A. Equal citizenship and principled State engagement with religion
- B. An official State religion
- C. Complete withdrawal from all religious matters
- D. Rule by religious majorities

Answer: A. The Constitution protects conscience and equality while permitting regulation and reform within limits.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 30

Question. The words 'socialist', 'secular' and 'integrity' were inserted by the:

- A. 44th Amendment
- B. 42nd Amendment
- C. 61st Amendment
- D. 73rd Amendment

Answer: B. The 42nd Amendment, 1976 inserted these expressions; related constitutional commitments pre-dated the wording.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 31

Question. Universal adult franchise chiefly constitutionalised:

- A. Administrative centralisation
- B. Judicial appointment
- C. Equal political membership
- D. Dual citizenship

Answer: C. The Constitution trusted adult citizens with political equality from commencement.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 32

Question. Which is correct about voting age?

- A. It was always 18
- B. It is fixed by the Preamble
- C. It was reduced by the 73rd Amendment
- D. It was reduced from 21 to 18 by the 61st Amendment

Answer: D. The 61st Amendment Act, 1988 reduced the voting age.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 33

Question. Single citizenship primarily promotes:

- A. Common national civil and political membership
- B. State secession
- C. Dual judicial systems
- D. Separate State passports

Answer: A. Single citizenship coexists with State identities and federal government.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 34

Question. All-India Services are constitutionally significant because they:

- A. Belong only to municipalities
- B. Bridge common recruitment and Union-State administration
- C. Eliminate State governments
- D. Replace the judiciary

Answer: B. They create administrative unity while raising legitimate federal-control questions.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 35

Question. Which statement about constitutional bodies is correct?

- A. All commissions are constitutional
- B. All bodies have identical removal safeguards
- C. Their source, tenure, powers and safeguards differ
- D. Independence eliminates accountability

Answer: C. ECI, CAG, PSCs and Finance Commission have distinct constitutional designs.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 36

Question. Which is NOT necessarily a constitutional body?

- A. Election Commission
- B. CAG
- C. UPSC
- D. A commission created only by statute

Answer: D. A statutory commission derives from legislation, not directly from the Constitution.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 37

Question. A National Emergency is proclaimed under:

- A. Article 352
- B. Article 356
- C. Article 360
- D. Article 368

Answer: A. Article 352 concerns war, external aggression or armed rebellion under current text.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 38

Question. The 44th Amendment strengthened emergency safeguards by:

- A. Removing Articles 20 and 21
- B. Replacing 'internal disturbance' with 'armed rebellion' and protecting Articles 20 and 21
- C. Making emergency permanent
- D. Ending parliamentary approval

Answer: B. The post-1975 reform tightened triggers and rights safeguards.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 39

Question. The constitutional third tier was principally added by:

- A. 42nd and 44th Amendments
- B. 61st and 69th Amendments
- C. 73rd and 74th Amendments
- D. 86th and 97th Amendments

Answer: C. The 73rd and 74th Amendments constitutionalised Panchayats and Municipalities.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Core MCQ 40

Question. After *Rajendra N. Shah* (2021), which statement is safest?

- A. Article 43B was invalidated
- B. The entire 97th Amendment disappeared
- C. Part IX-B governs all State cooperatives
- D. State-cooperative application of Part IX-B was invalidated while the multi-State field survived

Answer: D. The Court preserved Article 19(1)(c), Article 43B and the multi-State operation while enforcing federal ratification limits.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

8 remedial MCQs

Remedial MCQ 1

Question. Which distinction is correct?

- A. Salient features and basic structure overlap but are not identical
- B. Every feature is a basic-structure element
- C. Basic structure is a textual Schedule
- D. A feature must be one Article

Answer: A. The two categories overlap, but basic structure is a judicial limit on amendment and has no closed textual schedule.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Remedial MCQ 2

Question. What is the safest Article-count formulation?

- A. The current total is permanently fixed
- B. Original counts are exact; later totals require a counting caveat
- C. Only courts may count Articles
- D. There are no omitted provisions

Answer: B. Use the original 395/22/8 counts and qualify later totals.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Remedial MCQ 3

Question. Which classification is best?

- A. Purely unitary
- B. A compact among sovereign States
- C. Federal in structure with centralising, cooperative and asymmetric dimensions
- D. A confederation with secession rights

Answer: C. The qualified formulation captures both constitutional distribution and Union strength.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Remedial MCQ 4

Question. What is the correct current-status distinction for the 106th Amendment?

- A. It has not been enacted
- B. Reservation was operational from 2023
- C. It automatically applied to the 2024 election
- D. It commenced on 16 April 2026 but reservation awaits the Article 334A census-publication and delimitation sequence

Answer: D. Gazette commencement and operational reservation are distinct legal stages.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Remedial MCQ 5

Question. Constitutional morality is best understood as:

- A. Text-linked fidelity to constitutional forms, values and restraint
- B. A judge's private morality

- C. Majority preference alone
- D. A substitute for constitutional text

Answer: A. The doctrine disciplines institutions and protects constitutional values only when anchored in text and structure.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Remedial MCQ 6

Question. Which dated J&K statement is supported by official sources checked for this package?

- A. Statehood was restored in 2023
- B. The Article 370 decision was delivered in December 2023 and J&K remains a Union Territory with a legislature as checked on 21 August 2026
- C. The Supreme Court fixed a restoration deadline
- D. The Constitution still recognises the pre-2019 separate State Constitution

Answer: B. The Court upheld the changes and directed early statehood restoration without a deadline; no restoration notification was located in the official sources checked.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Remedial MCQ 7

Question. Part IX-A concerns:

- A. Panchayats
- B. Cooperative societies
- C. Municipalities
- D. Emergency provisions

Answer: C. Panchayats are Part IX; Municipalities Part IX-A; cooperatives Part IX-B; emergencies Part XVIII.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

Remedial MCQ 8

Question. Which claim is incorrect?

- A. India has an official-language framework
- B. The Constitution protects linguistic minorities
- C. Language arrangements can be asymmetric
- D. The Constitution declares Hindi the national language

Answer: D. The Constitution does not declare a national language.

Elimination note: The correct choice is the only option consistent with the source-owned constitutional distinction; the other options convert a qualified feature into an absolute claim.

PYQS AND ANSWER PRACTICE

Verified PYQ provenance and count

Corpus	Verified items retained	Provenance
Mains GS-II	2	Repository Mains routing ledger; wording cross-checked against the UPSC previous-paper listing and corroborating reproductions
Prelims GS-I	9	Repository routing ledgers; exact wording retained only where locally extracted; 2024 Q74 key checked against the official Set-A key
Total	11	No PYQ is invented; demand-only entries are not reverse-engineered into fictional options

Mains PYQ 1 - UPSC 2019 GS-II Q1

Question: "Do you think that the Constitution of India does not accept the principle of strict separation of powers rather it is based on the principle of 'checks and balance'? Explain." **10 marks · 150 words.**

Provenance: Official UPSC previous-paper listing; repository ledger
_PYQ-ROUTING-MAINS-GS1-GS2-ESSAY-2018-2023.md, 2019 GS-II Q1.

Model answer

[ANALYSIS] India rejects complete organ isolation and adopts functional differentiation reinforced by reciprocal checks. This is necessary because parliamentary government deliberately fuses the executive with the legislature.

[FACT] Separation markers include Article 50, which directs separation of the judiciary from the executive; Articles 121 and 211, which protect judges from ordinary legislative discussion of conduct; and Articles 122 and 212, which protect legislative procedure. *Ram Jawaya Kapur* (1955) therefore held that the Constitution does not contemplate a rigid separation.

[FACT] Overlaps are equally deliberate: the executive participates in legislation and promulgates ordinances under Articles 123 and 213; Parliament exercises constituent power under Article 368; courts frame rules, punish contempt and review legislation through Articles 13, 32 and 226. Executive responsibility under Article 75, legislative scrutiny and judicial review make each branch answerable.

[LIMIT] Overlap is constitutional only while it preserves each organ's core role. *Kesavananda Bharati* and *Indira Nehru Gandhi v. Raj Narain* protect separation and review within basic-structure reasoning.

[ANALYSIS] India therefore separates power enough to prevent concentration, but not so absolutely as to paralyse responsible government.

Why this earns marks: It directly answers the contrast, uses named Articles and cases, explains the mechanism of overlap and ends with a qualified verdict.

Mains PYQ 2 - UPSC 2021 GS-II Q1

Question: "'Constitutional Morality' is rooted in the Constitution itself and is founded on its essential facets. Explain the doctrine of 'Constitutional Morality' with the help of relevant judicial decisions." **10 marks · 150 words.**

Provenance: Official UPSC previous-paper listing; repository ledger
_PYQ-ROUTING-MAINS-GS1-GS2-ESSAY-2018-2023.md, 2021 GS-II Q1.

Model answer

[ANALYSIS] Constitutional morality is fidelity to constitutional forms, procedures and values over personal, partisan or majoritarian preference. Ambedkar, drawing on George Grote, treated it as a democratic habit required to make institutions work.

[FACT] Its essential facets are rule of law; limited and reasoned power; respect for institutional roles; liberty, equality, dignity and fraternity; minority protection; and accountability of constitutional functionaries. The Preamble and Articles 14, 15, 19, 21 and 25 provide textual anchors.

[FACT] In *Navtej Singh Johar* (2018), constitutional morality prevailed over exclusionary social morality. In *Indian Young Lawyers Association* (2018), the Court tested religious exclusion against equality, dignity and religious freedom. In *Government of NCT of Delhi v. Union of India* (2018), the doctrine informed representative responsibility

and federal balance.

[LIMIT] The doctrine becomes subjective if detached from text, structure and precedent. It cannot be a judge's private morality.

[ANALYSIS] Constitutional morality thus converts formal constitutional authority into restrained, inclusive and justified public power.

Why this earns marks: It defines the doctrine, identifies essential facets, supplies relevant judicial decisions and includes the principal legitimacy caution.

Solved Prelims PYQs

Prelims PYQ 1 - 2018 GS-I Q40: relationship between law and liberty

Source status: Demand-only repository ledger; official key unavailable locally. Options are not reconstructed.

INFERRED ANSWER - NOT OFFICIALLY VERIFIED LOCALLY · confidence high: General, prospective and constitutionally reviewable law is a condition of ordered liberty because it restrains arbitrary coercion. Law and liberty are not simple opposites.

Why this solution is safe: It answers the routed concept without inventing option wording or an official key.

Prelims PYQ 2 - 2018 GS-I Q45: main features of rule of law

Source status: Demand-only repository ledger; official key unavailable locally. Options are not reconstructed.

INFERRED ANSWER - NOT OFFICIALLY VERIFIED LOCALLY · confidence high: Dicey's core elements are supremacy of regular law over arbitrary power, equality before law and the legal protection of rights through courts.

Why this solution is safe: It preserves the exact demand family and gives the standard constitutional distinction.

Prelims PYQ 3 - 2020 GS-I Q7

Exact locally extracted question: "A constitutional government by definition is: (a) government by legislature (b) popular government (c) multi-party government (d) limited government."

INFERRED ANSWER - OFFICIAL KEY NOT HELD LOCALLY · confidence high: D, limited government.
Elections, parties or legislatures may exist without effective limits; constitutional government is defined by legally bounded authority.

Why this solution is safe: It states the key status and explains the defining criterion.

Prelims PYQ 4 - 2021 GS-I Q87: definition of State in political theory

Source status: Demand-only repository ledger; official key unavailable locally.

INFERRED ANSWER - NOT OFFICIALLY VERIFIED LOCALLY · confidence high: Population, territory, government and sovereignty are the conventional four elements.

Why this solution is safe: No fictional options are supplied.

Prelims PYQ 5 - 2021 GS-I Q90: best safeguard of liberty in liberal democracy

Source status: Demand-only repository ledger; official key unavailable locally.

INFERRED ANSWER - NOT OFFICIALLY VERIFIED LOCALLY · confidence depends on exact options: An independent judiciary operating through rule of law is the strongest conventional institutional safeguard; alert citizens and a free press remain supporting safeguards.

Why this solution is safe: The uncertainty caused by unavailable exact options is disclosed.

Prelims PYQ 6 - 2021 GS-I Q94: constitutional government and limiting authority

Source status: Demand-only repository ledger; official key unavailable locally.

INFERRED ANSWER - NOT OFFICIALLY VERIFIED LOCALLY · confidence high: Constitutional government is limited government whose powers are defined, distributed and restrained.

Why this solution is safe: The inference matches the owner concept and does not claim an official key.

Prelims PYQ 7 - 2023 GS-I Q33

Exact locally extracted question: Which statement best reflects the chief purpose of a Constitution? (a) determines objectives for necessary laws (b) enables political offices and government (c) defines and limits powers of government (d) secures social justice, equality and security.

INFERRED ANSWER - OFFICIAL KEY NOT HELD LOCALLY · confidence high: C. A Constitution both constitutes and limits governmental authority; the other options describe partial objectives.

Why this solution is safe: It uses the exact extracted wording and distinguishes the defining function from important but partial purposes.

Prelims PYQ 8 - 2023 GS-I Q84

Exact locally extracted demand: Statement I says 600 mm × 400 mm is a standard National Flag size; Statement II says the flag's length-to-width ratio is 3:2.

INFERRED ANSWER - OFFICIAL KEY NOT HELD LOCALLY · confidence high: Both statements are correct and Statement II explains Statement I because 600:400 simplifies to 3:2.

Why this solution is safe: The calculation is explicit; the item is cross-owned with national-symbol rules.

Prelims PYQ 9 - 2024 GS-I Q74

Exact official Set-A demand: Part IX-A - Municipalities; Part XVIII - Emergency Provisions; Part XX - Amendment of the Constitution. Which pairs are correctly matched?

OFFICIALLY VERIFIED SET-A ANSWER: D, all three. Part IX-A concerns Municipalities, Part XVIII Emergency Provisions and Part XX constitutional amendment.

Provenance: books\prelima_question_paper_answers\2024-GS1-Set A.pdf and Ans-2024-GS1.pdf; repository 2024-2025 routing ledger.

Why this solution is safe: It uses the official Set-A paper and key and states each mapping independently.

Six original solved Mains models

Original 10-marker 1

Question: Explain why single citizenship is an integrating feature rather than proof that India is unitary. **10 marks · 150 words.**

Demand: Define the feature, show its integrating mechanism, and qualify it within federalism.

Model answer

[FACT] India combines a dual polity with single Indian citizenship, unlike federations such as the United States that constitutionally recognise dual citizenship.

[ANALYSIS] Single citizenship creates common civil and political membership across States. It supports mobility, fraternity and equal national identity. It works with an integrated judiciary and All-India Services to create legal and administrative unity.

[FACT] Yet federalism remains real: Union and States possess constitutionally allocated legislative and executive fields; States have elected governments; Rajya Sabha supplies territorial representation; courts adjudicate competence disputes.

[LIMIT] Residence-based qualifications may operate where constitutionally and legally permitted, and common citizenship does not erase linguistic, cultural or State identities.

[ANALYSIS] Single citizenship is therefore an integrating device within a federation, not evidence that constitutional power is unitary.

Why this earns marks: Direct distinction, named federal counter-evidence, mechanism and qualification.

Original 10-marker 2

Question: Explain the Indian synthesis of parliamentary power and judicial review. **10 marks · 150 words.**

Demand: Avoid declaring either Parliament or courts sovereign; explain the constitutional allocation.

Model answer

[FACT] India adopts British-style responsible government and broad parliamentary legislation, while also adopting written rights and American-influenced judicial review.

[FACT] Parliament legislates within the Seventh Schedule and exercises constituent power under Article 368. Courts enforce limits through Articles 13, 32 and 226. *Kesavananda Bharati* subjects amendment to the basic-structure doctrine; *Maneka Gandhi* requires fair, just and reasonable Article 21 procedure.

[ANALYSIS] The design prevents two absolutes: Westminster parliamentary sovereignty and an unlimited judicial government. Parliament may change policy and most constitutional text; courts may invalidate unconstitutional action but must remain within jurisdiction, text and precedent.

[LIMIT] Judicial review is not judicial administration, and parliamentary majority is not a waiver of rights or federal competence.

[ANALYSIS] The Constitution is supreme; Parliament and courts are coordinate institutions exercising assigned, checked powers.

Why this earns marks: It gives the precise thesis, constitutional anchors, cases and a balanced limit.

Original 15-marker 1

Question: "The Indian Constitution is borrowed in ancestry but original in design." Discuss. **15 marks · 250 words.**

Model answer

[ANALYSIS] Constitutional originality lies not in inventing every component but in selecting, rejecting and recombining devices for India's democratic, social and territorial conditions.

[FACT] Britain supplied cabinet government, rule of law, writs, single citizenship and bicameralism; India rejected hereditary monarchy and unlimited parliamentary sovereignty. The United States influenced Fundamental Rights, judicial review, impeachment and the Vice-President; India rejected presidential government, dual citizenship and rigid organ separation. Canada influenced a strong-Centre federation and Union residuary power; Ireland DPSP; Australia the Concurrent List and joint sitting; South Africa amendment procedure; Japan "procedure established by law".

[FACT] The Government of India Act, 1935 supplied federal, gubernatorial, judicial, service, emergency and administrative structures. Yet popular sovereignty, universal franchise, republican government, justiciable rights and responsible ministries transformed their source and purpose.

[ANALYSIS] Distinctive combinations resulted: parliamentary federalism; rights plus non-justiciable social directives; single citizenship within a dual polity; normal federal operation with emergency centralisation; and asymmetry within common citizenship.

[LIMIT] Borrowing can retain centralising and legalistic habits, and transplantation does not guarantee suitable practice. Constitutional morality and institutions determine whether adaptation succeeds.

[ANALYSIS] The "bag of borrowings" charge therefore mistakes the genealogy of parts for the identity of the whole.

Why this earns marks: It uses comparison to prove adaptation, identifies rejected models, adds indigenous transformation and reaches a qualified verdict.

Original 15-marker 2

Question: Independent constitutional bodies strengthen democracy only when independence is joined to accountability. Examine. **15 marks · 250 words.**

Model answer

[ANALYSIS] Constitutional bodies disperse integrity functions so incumbents do not exclusively control elections, audit, recruitment or fiscal recommendations.

[FACT] Article 324 places election superintendence with the Election Commission; Articles 148-151 constitutionalise independent public audit through the CAG; Articles 315-323 protect Public Service Commissions; Article 280 provides a periodic Finance Commission. Tenure, removal rules, charged expenditure or protected service conditions reduce ordinary executive pressure, though safeguards differ.

[ANALYSIS] Independence improves credibility: elections require neutral administration; audit enables legislative control of expenditure; merit recruitment limits patronage; fiscal recommendations structure Union-State sharing.

[FACT] These bodies remain accountable through constitutional text, reasoned decisions, reports to legislatures, public scrutiny and judicial review. Independence is functional, not personal immunity or policy sovereignty.

[LIMIT] Appointment processes, vacancies, information asymmetry and post-tenure incentives can weaken real autonomy. Conversely, unchecked insulation can produce opacity and institutional overreach.

[ANALYSIS] The constitutional objective is protected competence with public reason: enough insulation to resist incumbents, enough accountability to remain lawful and democratic.

Why this earns marks: It covers four named bodies, explains why safeguards matter, and balances autonomy against accountability risks.

Original 20-marker 1

Question: Evaluate the strengths and internal tensions of the salient features of the Indian Constitution. **20 marks · 250 words.**

Model answer

[ANALYSIS] The Constitution is an architecture of paired goals: authority and restraint, unity and diversity, political democracy and social transformation. Its strengths arise from interaction; its tensions arise when one pole overwhelms the other.

[FACT] Federal distribution, elected States and judicial adjudication accommodate territory, while Union residuary power, single citizenship, All-India Services and emergency provisions create national capacity. This enables coordination but risks central overreach.

[FACT] Parliamentary responsibility permits removal of the executive through the lower House. Yet party discipline and stable majorities can convert responsibility into executive dominance. Functional separation and judicial review supply counterweights, though judicial overreach and appointment concerns raise legitimacy questions.

[FACT] Parts III, IV and IV-A join liberty, social welfare and civic responsibility. *Minerva Mills* supports harmony, but rights restrictions and redistributive policy remain contested. Universal franchise and independent election administration create political equality, while social inequality can restrict substantive participation.

[FACT] Asymmetry, cultural rights, Scheduled-Area arrangements and affirmative action accommodate diversity. Uniformity may aid national standards, but coerced sameness can damage fraternity. Detail and graded amendment bring clarity and adaptability; they also create complexity and litigation.

[LIMIT] No feature is self-executing. Parties, conventions, institutional capacity, access to remedies and constitutional morality shape outcomes.

[ANALYSIS] The design is strongest when central capacity remains federal, majority rule remains rights-bound, review remains restrained and transformation remains accountable.

Why this earns marks: It evaluates six paired tensions with named evidence and gives a graded, demand-responsive verdict.

Original 20-marker 2

Question: A detailed written Constitution does not by itself guarantee constitutionalism. Analyse with reference to India's salient features. **20 marks · 250 words.**

Model answer

[ANALYSIS] A Constitution creates and distributes authority; constitutionalism requires that authority to be effectively limited, accountable and remedial in practice. India's detail is therefore necessary evidence, not a sufficient guarantee.

[FACT] Written federal lists, Articles 13, 32 and 226, cabinet responsibility, amendment procedure, emergency safeguards and independent bodies create visible legal standards. Detail accommodates diversity, defines institutions and reduces dependence on unwritten consensus.

[ANALYSIS] Yet operation depends on conventions and incentives. A disciplined majority can weaken legislative scrutiny despite collective responsibility. A formally federal text can be centralised through fiscal, gubernatorial or

emergency practice. Rights require accessible courts and compliance; independent bodies require credible appointments, resources and transparency. Parts IX and IX-A do not guarantee functions, funds and functionaries.

[FACT] Constitutional morality supplies the missing operating ethic: actors respect forms, procedures, minority rights and institutional restraint. *Navtej Singh Johar* shows constitutional values checking social majoritarianism; *Government of NCT of Delhi* links institutional conduct to representative and federal principles.

[LIMIT] Constitutional morality must remain text-linked; otherwise it risks subjective substitution. Likewise, judicial review cannot replace administration or democratic deliberation.

[ANALYSIS] India's detailed Constitution creates the infrastructure of constitutionalism, but institutions, public reason, remedies and self-restraint determine whether the infrastructure works.

Why this earns marks: It distinguishes Constitution from constitutionalism, uses multiple features as evidence, analyses implementation gaps and qualifies the morality/review solution.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

[LIMIT] This block preserves every substantive Advanced-owner point as enrichment. Its 'about 470 Articles' figure is explicitly a dated source snapshot, not an uncontested current total. Current legal-status notes are controlled by the live-source audit above.

Subject: Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II **Grounded in:** Indian Polity by M. Laxmikant, Ch. 3 (direct check of the local Sixth Revised Edition PDF). [FACT] = from source book · [ANALYSIS] = inference. (*Very high-frequency Prelims chapter.*) *Companion:* basic/Salient-Features.md.

0. Framing

[FACT] Borrowed from almost every constitution yet distinctive. Major amendments reshaping original 1949 features: **7th, 42nd, 44th, 73rd, 74th, 97th, 101st**. [FACT] **42nd Amendment (1976) = "Mini- Constitution."** But *Kesavananda* (1973) bars altering **basic structure**.

The 17 Salient Features

1. Longthest written constitution □

[FACT] **Original (1949):** Preamble + **395 Articles** (22 Parts) + **8 Schedules**. **Present (2019):** Preamble + **~470 Articles** (25 Parts) + **12 Schedules**. Amendments **deleted ~20 Articles + Part VII, added ~95 Articles, 4 Parts (IV-A, IX-A, IX-B, XIV-A), 4 Schedules (9,10,11,12)**. Four causes of size: (a) geographical vastness/diversity; (b) **Gol Act 1935** influence; (c) **single constitution for Centre & states**; (d) legal luminaries' dominance.

2. Drawn from various sources □□

[FACT] Ambedkar: framed after "**ransacking all the known Constitutions of the World.**" **Structural part** <- **Gol Act 1935**; **philosophical part** <- **US (FR) + Ireland (DPSP)**; **political part** <- **British** (Cabinet govt, executive-legislature relations). **Gol Act 1935 = most profound/material source** (>half the provisions resemble it). (*Full sources table below - §Sources.*)

3. Blend of rigidity & flexibility

[FACT] Neither rigid (USA) nor flexible (Britain). **Art 368:** (a) special majority; (b) special majority
- half states; plus (c) simple-majority items **outside Art 368**.

4. Federal system with unitary bias □

[FACT] **Federal features:** two governments, division of powers, written & supreme constitution, rigidity, independent judiciary, bicameralism. [FACT] **Unitary features:** strong Centre, single constitution, single citizenship, flexibility, integrated judiciary, Centre-appointed governors, all-India services, emergency provisions. [FACT] Word "Federation" **never used**; **Art 1 = "Union of States"** -> (i) not an agreement of states, (ii) **no right to secede**. Descriptions: "**quasi-federal**" (K.C. Wheare), "**bargaining federalism**" (Morris Jones), "**co-operative federalism**" (Granville Austin), "**federation with a centralising tendency**" (Ivor Jennings).

5. Parliamentary form of government □

[FACT] British (Westminster) model, not US presidential - cooperation between legislature & executive (vs separation of powers). At **Centre & states**. Features: (a) nominal + real executives; (b) majority- party rule; (c) **collective responsibility** to legislature; (d) ministers from legislature; (e) PM/ CM leadership; (f) dissolution of lower House. [FACT] Differs from Britain: Indian Parliament is **not sovereign**; India has an **elected head (republic)** vs hereditary monarch.

6. Synthesis of parliamentary sovereignty & judicial supremacy

[FACT] Blends **British parliamentary sovereignty + American judicial supremacy**. India's judicial review is **narrower** than the US because India has "**procedure established by law**" (**Art 21**) vs US "due process of law." SC can strike down laws (judicial review); Parliament can amend most of the Constitution (constituent power).

7. Integrated & independent judiciary □

[FACT] **Integrated**: single pyramid - SC -> High Courts -> subordinate courts - enforcing **both central & state laws** (unlike US dual system). SC = federal court + highest appeal court + guarantor of FR + guardian of Constitution. **Independence safeguards**: security of tenure, fixed service conditions, expenses on **Consolidated Fund of India**, no legislative discussion on judges' conduct, ban on post-retirement practice, contempt power, separation from executive.

8. Fundamental Rights

[FACT] Part III, **6 rights** (14-18, 19-22, 23-24, 25-28, 29-30, 32) - promote **political democracy**, justiciable via writs; not absolute (reasonable restrictions); amendable; suspendable in emergency **except Art 20 & 21**. (Detail: 07_Fundamental-Rights.md.)

9. Directive Principles of State Policy

[FACT] Part IV, Ambedkar's "novel feature"; 3 categories; **social & economic democracy / welfare state**; non-justiciable; Minerva Mills - FR-DPSP **balance = bedrock**. (Detail: 08_Directive-Principles.md.)

10. Fundamental Duties

[FACT] Part IV-A, **Art 51A, 11 duties** (42nd Amdt 1976 + 86th Amdt 2002), Swaran Singh Committee, citizens only, non-justiciable. (Detail: 09_Fundamental-Duties.md.)

11. A secular state □

[FACT] No official religion. "**Secular**" added to Preamble by **42nd Amdt 1976**. Provisions: Art 14, 15, 16, 25-30, 44. [FACT] India = **positive secularism** (equal respect / equal protection to all religions), not the Western **negative** wall-of-separation. Communal representation abolished (except **temporary SC/ST seat reservation**).

12. Universal adult franchise □

[FACT] Vote at **18** (reduced from 21 by **61st Amdt, 1988**) for Lok Sabha & state assemblies, no discrimination. A bold experiment given size/poverty/illiteracy.

13. Single citizenship

[FACT] Dual polity but **single (Indian) citizenship** - unlike US dual citizenship. All enjoy same civil/ political rights regardless of state. (Detail: 06_Citizenship.md.)

14. Independent bodies □

[FACT] (a) **Election Commission** (Art 324); (b) **CAG** - "guardian of public purse"; (c) **UPSC**; (d) **State PSCs**. Independence via security of tenure, fixed conditions, expenses on Consolidated Fund.

15. Emergency provisions □

[FACT] Three types: (a) **National Emergency** - war/external aggression/armed rebellion (**Art 352**); (b) **President's Rule** - failure of constitutional machinery (**Art 356**) or non-compliance with Centre's directions (**Art 365**); (c) **Financial Emergency** (**Art 360**). During emergency, federal -> **unitary** without formal amendment - a unique feature.

16. Three-tier government □

[FACT] **73rd Amdt 1992** -> **Panchayats** (Part IX + 11th Schedule); **74th Amdt 1992** -> **Municipalities** (Part IX-A + 12th Schedule). Third tier is **not found in any other constitution**.

17. Co-operative societies

[FACT] **97th Amdt 2011**: (1) right to form co-ops = FR under **Art 19**; (2) new DPSP **Art 43-B**; (3) new **Part IX-B** (Art 243-ZH to 243-ZT). [ANALYSIS] (SC in *Union of India v. Rajendra N. Shah*, 2021, struck down the Part IX-B provisions **for state co-ops** for lack of state ratification; multi-state co-op provisions stand.)

Sources of the Constitution - full table (Table 3.4) □□ Prelims gold

Source	Features borrowed
[FACT] Gol Act 1935	Federal scheme, office of Governor, judiciary, PSCs, emergency provisions, administrative details
[FACT] British	Parliamentary govt, rule of law, legislative procedure, single citizenship, cabinet system, prerogative writs, parliamentary privileges, bicameralism
[FACT] US	Fundamental rights, independence of judiciary, judicial review, impeachment of President, removal of SC/HC judges, post of Vice-President
[FACT] Ireland	DPSP, nomination of members to Rajya Sabha , method of election of President
[FACT] Canada	Federation with strong Centre, residuary powers in Centre, Centre-appointed governors, advisory jurisdiction of SC
[FACT] Australia	Concurrent List , freedom of trade/commerce/intercourse, joint sitting of the two Houses
[FACT] Weimar (Germany)	Suspension of FR during Emergency
[FACT] USSR (Soviet)	Fundamental Duties , ideal of justice (social/economic/political) in Preamble
[FACT] France	Republic , ideals of liberty/equality/fraternity in Preamble
[FACT] South Africa	Procedure for amendment , election of Rajya Sabha members
[FACT] Japan	Procedure established by law

Criticism

[FACT] "**Borrowed/bag of borrowings/hotch-potch/patchwork**." Ambedkar's rebuttal: after 100+ years of written constitutions, all must look similar in fundamentals; the only novelty is variation to suit Indian needs - "the charge of a blind copy is based on inadequate study."

[FACT - CURRENT LINK] CA / relevance

- [FACT - CURRENT LINK] J&K: [FACT] note - till 2019 J&K had its **own constitution** (Art 370); abolished 2019; **SC upheld

the abrogation in Dec 2023** (*In re Article 370*), reaffirming India's federal-with-unitary-bias design.

- [FACT - CURRENT LINK] Co-operatives (feature 17): *Rajendra N. Shah* 2021 ruling + creation of the **Ministry of Co-operation (2021)** are live CA hooks.

UPSC Traps

- WRONG: "Federation" is used in the Constitution -> **never**; Art 1 says "**Union of States**."
- WRONG: Concurrent List borrowed from Canada -> **Australia**; strong-Centre federalism <- **Canada**.
- WRONG: Fundamental Duties from USA -> **USSR**; DPSP from USA -> **Ireland** (FR <- USA).
- WRONG: "Procedure established by law" from Britain -> **Japan**.
- WRONG: Amendment procedure borrowed from USA -> **South Africa**.
- WRONG: Voting age was always 18 -> reduced from **21** -> **18 by 61st Amdt (1988)**.
- WRONG: Secular/Socialist were original Preamble words -> **added by 42nd Amdt, 1976**.

Mains angles

- "The Indian Constitution is federal in form but unitary in spirit." Discuss.
- Positive secularism vs the Western wall-of-separation model.
- Is the Indian Constitution merely a "bag of borrowings"? (Ambedkar's defence).

<!-- BEGIN GENERATED PYQ INTEGRATION: 2018-2023 -->

Historical PYQ Integration (2018-2023)

Status: Question-level PYQ demand is integrated into this owner. **Provenance:** Audited local official-paper routing ledgers: _PYQ-ROUTING-MAINS-GS1-GS2-ESSAY-2018-2023.md.

- **Years represented:** 2019, 2021
- **Paper(s):** GS-II
- **Routed question demands:** 2

Ye ar	Pa per	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
20 19	GS -II	1	Strict separation of powers against checks and balances	Explain · 10 marks · 150 words	Routed to owning topic; word limit taken from the instruction block	Prepare context, core dimensions, evidence/examples, counterpoint and a concise conclusion.
20 21	GS -II	1	Doctrine of Constitutional Morality and its essential facets	Explain with relevant judicial decisions · 10 marks · 150 words	Routed to owning topic	Prepare context, core dimensions, evidence/examples, counterpoint and a concise conclusion.

What this owner must now support

- Strict separation of powers against checks and balances
- Doctrine of Constitutional Morality and its essential facets

The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not claim that lexical presence alone proves full conceptual sufficiency.

<!-- END GENERATED PYQ INTEGRATION: 2018-2023 -->

CONSOLIDATED REGISTER NOTES

Rapid definition and architecture

- [FACT] Feature = system-level design characteristic; provision = textual rule; institution = office/body; value = normative end.
- [FACT] Constitution creates and distributes power; constitutional law includes binding public-law rules; constitutionalism requires effective limitation, accountability and remedies.
- A salient constitutional feature is a system-level design characteristic produced by the interaction of provisions, institutions, values and practice.
- [LIMIT] Salient features and basic structure overlap but are not identical.

Written detail, source caution and amendment spectrum

- [FACT] Original form: Preamble, 395 Articles, 22 Parts, 8 Schedules.
- [LIMIT] Later exact Article totals vary by counting inserted, omitted and renumbered provisions; do not state one unqualified present total.
- [FACT] Size reasons: diversity, the 1935 Act, one Union-State framework and administrative/legal detail.
- [FACT] Amendment: simple-majority matters outside Article 368; special majority; special majority plus at least half the States for specified federal matters; basic-structure limit.

Borrowed, adapted and rejected

Source	Adapted	Rejected or altered
Britain	Cabinet responsibility, rule of law, single citizenship	Parliamentary sovereignty and monarchy
United States	Rights, review, judicial independence	Presidentialism, dual citizenship, rigid separation
Canada	Strong-Centre federation and Union residuary power	Indestructible-State model
Ireland / Australia	DPSP / Concurrent List and joint sitting	One-to-one copying
1935 Act	Federal, judicial, service, emergency and administrative structures	Colonial legitimacy, restricted franchise and communal representation

Power map: federal, parliamentary and checked

- [FACT] Article 1: Union of States; no compact or secession right.
- [ANALYSIS] Federal + centralising + cooperative + asymmetric dimensions must be stated together.
- [FACT] Parliamentary chain: electorate -> lower House -> Council of Ministers -> administration.
- [FACT] Separation is functional: Article 50; Articles 121/211; 122/212; ordinances 123/213; review 13/32/226.
- [ANALYSIS] Constitution supreme; neither Parliament nor courts are unlimited sovereigns.

Judiciary, rule of law and limited government

- [FACT] Integrated hierarchy: Supreme Court -> High Courts -> subordinate courts, administering Union and State law.
- [FACT] Independence = tenure/service/financial and institutional safeguards; not freedom from accountability.
- [ANALYSIS] Rule of law restrains arbitrariness; limited government means bounded, not weak, government.
- [FACT] Article 21 says procedure established by law; *Maneka Gandhi* requires fair, just and reasonable procedure.

Rights, social transformation and civic responsibility

- [FACT] Rights are justiciable; DPSP non-justiciable but fundamental in governance; Duties non-justiciable civic obligations.
- [FACT] *Minerva Mills*: harmony between Parts III and IV is central.
- [LIMIT] DPSP are not directly enforceable merely as DPSP; Duties are not automatic penal offences.
- [ANALYSIS] Dignity centres the person; fraternity links liberty and equality to social solidarity.

Democracy, secularism and national integration

- [FACT] Secular/socialist/integrity wording entered through the 42nd Amendment; underlying commitments pre-dated it.
- [ANALYSIS] Indian secularism = equal citizenship and principled engagement, not theocracy or an absolute wall.
- [FACT] Universal franchise constitutionalised political equality; voting age 21 -> 18 through the 61st Amendment.
- [FACT] Single citizenship, integrated courts and All-India Services integrate a federal polity.

Bodies, emergency and decentralisation

- [FACT] ECI, CAG, UPSC/SPSC and Finance Commission disperse integrity functions; safeguards differ.
- [FACT] Articles 352, 356 and 360 concern distinct emergencies; temporary centralisation remains constitutional and reviewable.
- [FACT] 73rd/74th Amendments added detailed Parts IX/IX-A and Schedules 11/12.
- [ANALYSIS] Real decentralisation depends on functions, funds and functionaries.

Cooperatives, asymmetry and dated current controls

- [FACT] 97th Amendment: Article 19(1)(c), Article 43B and Part IX-B.
- [FACT] *Rajendra N. Shah* (2021): State-cooperative Part IX-B field invalidated for lack of ratification; Article 19(1)(c), Article 43B and multi-State field survive.
- [FACT][checked 21 August 2026] 106th Amendment commenced 16 April 2026; reservation is not operational pending the Article 334A census-publication and delimitation sequence.
- [FACT][checked 21 August 2026] J&K remains a Union Territory with a legislature in the official sources checked; the 2023 judgment fixed no statehood-restoration deadline.
- [LIMIT] No Governor-assent timeline claim is used in this topic package.

Constitutional morality, criticism and answer verdicts

- [ANALYSIS] Constitutional morality = text-linked fidelity to forms, values, institutional restraint and minority protection.
- [LIMIT] It is not personal judicial morality.
- [ANALYSIS] Recurring tensions: federalism/centralisation; liberty/reform; responsibility/executive dominance; review/democratic legitimacy; detail/complexity; uniformity/asymmetry.
- [ANALYSIS] Best rebuttal to 'bag of borrowings': adaptation, rejection and democratic transformation establish originality.
- **Final verdict:** The Indian Constitution is a carefully adapted architecture of authority, restraint, representation and transformation whose success depends as much on constitutional morality and institutions as on text.

PYQ routes, close-option traps and answer spine

- [FACT] Direct Mains owners: 2019 GS-II Q1 separation/checks; 2021 GS-II Q1 constitutional morality.
- [FACT] Routed Prelims: 2018 Q40/Q45; 2020 Q7; 2021 Q87/Q90/Q94; 2023 Q33/Q84; 2024 Q74.
- [LIMIT] Do not say: 'Federation' is constitutional text; every amendment needs ratification; India uses strict separation; DPSP are irrelevant; secularism is total State withdrawal; Hindi is the national language; the whole 97th Amendment was struck down.
- **Answer spine:** direct thesis -> named Article/case/institution -> mechanism -> counterpoint/limit -> graded verdict.

End of consolidated register notes. No teaching or practice section follows.